

Risk Management Plan

**Galaxy Cleaners
Waverly Place Shopping Center
101-B New Waverly Place
Cary, Wake County, NC
DSCA Site #DC920029**

**H&H Project No. DS0-85A
January 15, 2016**



**#C-1269 Engineering
#245 Geology**

**Risk Management Plan
Galaxy Cleaners (DC920029)
Cary, North Carolina
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Table of Contents

<u>Section</u>	<u>Page No.</u>
1.0 Introduction.....	1
2.0 Objectives of RMP	1
3.0 Summary of Approved Risk Assessment Report.....	2
4.0 RMP Components	4
4.1 Summary of Prior Assessment and Interim Actions	4
4.2 Remedial Action	6
5.0 Data Collected During RMP Implementation.....	8
6.0 Land-Use Restrictions	8
7.0 Long-Term Stewardship Plan.....	9
8.0 RMP Implementation Schedule.....	9
9.0 Criteria for Demonstrating RMP Success	9
10.0 Contingency Plan if RMP Fails	10
11.0 Conclusions and Recommendations.....	10

List of Appendices

Appendix A	Documentation of Plume Stability Evaluation
Appendix B	Level 1 Ecological Risk Assessment Checklists
Appendix C	Source Property Notice of Dry-Cleaning Solvent Remediation
Appendix D	Off-Source Property Notice of Dry-Cleaning Solvent Remediation
Appendix E	Example of Annual Certification of Land-Use Restrictions
Appendix F	Example Documents Announcing the Public Comment Period

Risk Management Plan
Galaxy Cleaners (DC920029)
Cary, North Carolina
H&H Job No. DS0-85A

1.0 Introduction

Hart & Hickman, PC (H&H) has prepared this Risk Management Plan (RMP) for the Galaxy Cleaners site on behalf of the North Carolina Dry-Cleaning Solvent Cleanup Act (DSCA) Program. The former Galaxy Cleaners facility is located at 101-B New Waverly Place in Cary, Wake County, North Carolina. Site assessment activities have confirmed that soil and groundwater contamination associated with the Galaxy Cleaners site is confined to the source property and one off-source property. This RMP is intended to comply with the requirements of DSCA (N.C.G.S. 143-215.104A *et seqs*) and promulgated rules and follows the outline provided in the DSCA Program's risk-based corrective action (RBCA) guidance. A site location map is included as Figure 1.

2.0 Objectives of RMP

Assessment activities completed at the Galaxy Cleaners site indicated that the dry-cleaning solvent tetrachloroethylene (PCE) is present above Title 15A NCAC 2L .0202 Groundwater Standards (2L Standards) on the source property and one off-source property. Bromodichloromethane is also present above 2L Standards on the source property. The off-source property with PCE in groundwater is:

- 530 New Waverly Place, Cary, NC, Parcel ID: 0762635240, Oaks Development LLC (owner), multi-unit offices (tenant).

H&H submitted a Risk Assessment report for the site on April 30, 2015. The results of the risk evaluation indicate no exceedances of acceptable risk levels under both the current and future scenarios for the source property and off-source property. However, the evaluation was based on specific land use conditions that require an RMP. Thus, the objective of this RMP is to ensure that those land use conditions remain valid in the future.

3.0 Summary of Approved Risk Assessment Report

Based on the assessment results for the site, H&H completed a Risk Assessment report dated April 30, 2015. The first step in the risk assessment process is development of an exposure model. Two exposure units were assigned: Exposure Unit #1 encompassing the former Galaxy Cleaners facility and the remaining area of the contaminant plume on the source property, and Exposure Unit #2 encompassing the extent of the groundwater contaminant plume located beyond the boundaries of the source property.

Complete exposure pathways identified for Exposure Unit #1 include indoor inhalation of vapor emissions, outdoor inhalation of vapor emissions, and surficial soil exposure by a current or future non-residential worker, future resident, or construction worker. H&H conservatively used the maximum concentrations detected in soil, groundwater, and sub-slab vapor within the exposure unit as representative concentrations (RCs) for the risk evaluation. Although indoor air sampling was previously conducted in the former dry-cleaning facility, the indoor air data was not used because the former dry-cleaning space was subsequently upfitted and incorporated into the adjacent grocery store space. Thus, the sub-slab vapor data was used to evaluate both current and future indoor air risk exposure. The indoor inhalation of vapor pathway was evaluated using the DSCA risk calculator. The remaining pathways were evaluated using soil and groundwater data and the Groundwater Services, Inc. (GSI) risk software. The results of the modeling under the current and future scenarios indicated no exceedances of acceptable risk levels for a non-residential worker, resident, or construction worker.

Complete exposure pathways identified for Exposure Unit #2 include indoor and outdoor inhalation of vapor emissions from groundwater. H&H conservatively evaluated a residential scenario to minimize land use restrictions on the property, even though the property is used for non-residential purposes. H&H also conservatively used the maximum groundwater contaminant concentrations detected within the exposure unit as the RCs for groundwater. The outdoor air exposure pathway was modeled using the GSI risk software, and the indoor air exposure pathway was modeled using the DSCA risk calculator. The results of the modeling

under the current and future scenarios indicated no exceedances of acceptable risk levels for Exposure Unit #2.

As part of the risk assessment, H&H also evaluated the protection of groundwater use and surface water pathways. For the protection of groundwater use evaluation, H&H identified the nearest potential point of exposure (POE) as the closest downgradient property boundary where groundwater impacts have not been observed. Modeling under this scenario assumes that land-use controls restricting the use of groundwater will be implemented for the properties within Exposure Unit #1 and Exposure Unit #2 where groundwater impacts are present. The RC used for the groundwater source was conservatively obtained from the maximum groundwater contaminant concentration detected in MW-4, which is the closest monitoring well to the POE. The RC used for the soil source was the maximum concentration detected at the site (GP-2). The modeling results for the protection of groundwater use did not indicate an exceedance of the Site-Specific Target Levels (SSTLs), and groundwater sampling completed at the site confirms the groundwater plume is stable.

For the protection of surface water use evaluation, the POE was determined to be the closest point of an unnamed tributary of Long Branch, located approximately 225 feet downgradient of monitoring well MW-4. The modeling results for the protection of surface water use did not indicate exceedances of the SSTLs, and groundwater sampling completed at the site confirms the groundwater plume is stable.

Based on the results of this risk assessment, H&H concludes that the release at the subject site does not pose an unacceptable risk and recommends site closure in accordance with the DSCA Program's risk-based rules. Land-use controls restricting the use of groundwater will be implemented on the source property and the adjacent commercial property to the south.

4.0 RMP Components

4.1 Summary of Prior Assessment and Interim Actions

The former Galaxy Cleaners facility operated in the Waverly Place Shopping Center from the mid-1990s to mid-2010. The shopping center property is composed of a 22.54-acre parcel containing a multi-tenant shopping center building, which was built in 1987. The former dry-cleaning facility operated in the southern portion of the building in a tenant space that is now part of the Whole Foods grocery store. The former dry-cleaning operations involved the use of PCE until July 2000 when the facility reportedly switched to a petroleum dry-cleaning solvent.

In 2004, a Limited Soil and Groundwater Assessment Report completed by Professional Service Industries, Inc. (PSI) evaluated a potential release of dry-cleaning solvents. As part of this assessment, five soil borings were advanced including two samples within the dry-cleaning facility and three samples around the outside of the dry cleaning facility (soil boring IDs: GP-1, GP-2, GP-3, GP-4, GP-5). PCE (0.0064 mg/kg) was only detected in GP-2 collected at a depth of 18-20 feet below ground surface (bgs). The detected PCE concentration is below the DSCA Tier I Risk Based Screening Level (RBSL) of 0.023 mg/kg. One groundwater sample was collected from soil boring GP-5. PCE was detected in GP-5 groundwater sample at a concentration of 0.0018 mg/L, which exceeds the 2L Standard of 0.0007 mg/L. In 2005, the site was enrolled in the DSCA Program.

In July 2005, Metcalf & Eddy, Inc. completed a Prioritization Assessment Report which documented a receptor survey, advancement of three soil borings (SB-1, SB-2, and SB-3), and the installation and sampling of three monitoring wells. No dry-cleaning related constituents were detected in the soil samples. PCE was detected in groundwater samples collected from MW-1 (0.0018 mg/L) and MW-3 (0.0053 mg/L) at concentrations above the 2L Standard of 0.0007 mg/L for PCE. Methyl tert-butyl ether (MTBE) was also detected in the groundwater sample collected from monitoring well MW-3 (0.0063 mg/L) at a concentration below the 2L Standard of 0.02 mg/L for MTBE.

Withers & Ravenel (W&R) installed and sampled four additional groundwater monitoring wells (MW-4 through MW-7) and collected samples from the existing three monitoring wells in January 2007. Consistent with the 2005 data, PCE was detected in the groundwater samples collected from MW-1 (0.0012 mg/L) and MW-3 (0.0052 mg/L) and MTBE was detected in MW-3 (0.0052 mg/L). No dry-cleaning related constituents were detected in MW-2, or MW-4 through MW-7.

W&R completed quarterly groundwater sampling of the site monitoring wells between November 2007 and November 2008. The results of the quarterly sampling events were similar to the previous January 2007 event. In January and February 2008, W&R conducted additional soil assessment activities inside the dry-cleaning facility which included the advancement of seven soil borings (WR-1 through WR-7) with soil samples collected from multiple depths within each boring. There were no dry-cleaning related constituents detected in the soil samples.

Vapor intrusion assessment activities were conducted at the site by W&R between 2010 and 2011. Initially, W&R collected a sub-slab vapor sample within the former dry-cleaning facility in February 2010. PCE was detected at a concentration of 328 $\mu\text{g}/\text{m}^3$. W&R collected a second sub slab-vapor sample and an indoor air sample in June 2011 after dry-cleaning operations had ceased and the dry-cleaning machinery had been removed. The sub-slab vapor sample contained a PCE concentration of 18 $\mu\text{g}/\text{m}^3$, and the indoor air sample contained detectable concentrations of PCE (16 $\mu\text{g}/\text{m}^3$), trichloroethene (TCE, 9.1 $\mu\text{g}/\text{m}^3$) and cis 1,2 dichloroethene (0.1 $\mu\text{g}/\text{m}^3$). Given the relatively low sub-slab PCE concentrations and lack of TCE in the sub-slab vapor, the detected indoor air concentrations were not believed to be associated with vapor intrusion.

In August 2012, W&R collected one indoor air sample and one sub-slab vapor sample inside the former Galaxy Cleaners facility. No dry-cleaning constituents were detected in the indoor air sample, and the sub-slab vapor sample only exhibited a low concentration of PCE (58 $\mu\text{g}/\text{m}^3$). As documented in the site risk assessment, no unacceptable vapor intrusion risks were identified at the site based on the assessment results.

In 2013, H&H collected samples from monitoring wells MW-4 through MW-7 to evaluate current concentrations prior to closure. Monitoring wells MW-1 and MW-2 were dry at the time at sampling, and MW-3 could not be sampled due to insufficient water. PCE was detected in the groundwater sample from well MW-4 (0.00229 mg/L), and MTBE was detected in the groundwater sample from well MW-6 (0.00118 mg/L). No other constituents were detected in the groundwater samples.

In May 2014, H&H completed limited additional groundwater assessment activities which included the installation of a nested pair of monitoring wells, MW-8S and MW-8I, in the source area to delineate the vertical extent of PCE in groundwater. Subsequently, groundwater samples were collected from existing wells MW-4, MW-5, MW-7, and the newly installed wells MW-8S and MW-8I. PCE was detected in the groundwater sample from well MW-4 (0.00105 mg/L). No other dry-cleaning related constituents were detected in the May 2014 groundwater samples. H&H concluded that based on recent and historical groundwater data, the groundwater plume associated with Galaxy Cleaners appears to be adequately defined and stable. H&H completed a risk assessment in April 2015 which indicated that the risk associated with the site contamination is below the risk levels acceptable by the DSCA Program. If land-use controls are implemented to ensure the risk assessment assumptions remain valid in the future, no further action status is recommended for the site.

4.2 Remedial Action

According to the DSCA Program's RBCA guidance, no remedial action is necessary if four site conditions are met. Each of these conditions and their applicability to the subject site are addressed below.

Condition 1: The dissolved plume is stable or decreasing.

As discussed in Section 4.1, quarterly groundwater monitoring was conducted between November 2007 and November 2008, during which groundwater samples were collected from the seven on-site monitoring wells. Additional groundwater monitoring was completed in 2013 and 2014. The only volatile organic compounds detected during the groundwater sampling

events were PCE, acetone, MTBE, chloroform, and bromodichloromethane. Acetone, MTBE, chloroform, and bromodichloromethane are not compounds associated with dry-cleaning operations. The detected concentrations of acetone, MTBE, and chloroform are below their respective 2L Standards of 6 mg/L, 0.02 mg/L, and 0.07 mg/L, respectively. Bromodichloromethane was detected above the 2L Standard of 0.0006 mg/L; however, this constituent is not associated with dry-cleaning solvents and can be found in municipal water as a disinfection byproduct. PCE is the only dry-cleaning related constituent detected in site groundwater.

H&H prepared PCE concentration versus time graphs for the sampling events completed at the site. As shown in the graphs, consistently low concentrations of PCE have been detected at the site with concentrations either decreasing or slightly fluctuating over time. Based on the site data, H&H concludes that the plume is stable. Documentation of the plume stability evaluation, including a figure showing the monitoring well locations, a table showing historical groundwater analytical data, and PCE concentration versus time graphs, is included in Appendix A.

Condition 2: The maximum concentration within the exposure domain for every complete exposure pathway of any constituent of concern (COC) is less than ten times the RC of that COC.

For the risk assessment, H&H used the maximum concentrations detected at the site as the RC for each constituent. Thus, this condition has been met for all COCs and exposure pathways.

Condition 3: Adequate assurance is provided that the land-use assumptions used in the DSCA Program's RBCA process are not violated for current or future conditions.

As discussed in Section 6.0, land-use controls will be implemented for the source property and adjacent non-source property to ensure that the assumptions made in the risk assessment remain valid in the future.

Condition 4: There are no ecological concerns at the site.

W&R completed a Level 1 Ecological Risk Assessment dated May 2007 for the site in accordance with the DSCA Program's RBCA guidance. The results of the evaluation indicate

that the release does not pose an unacceptable ecological risk. The completed Level 1 Ecological Risk Assessment Checklists A and B and associated attachments are included as Appendix B.

The site's compliance with the four above referenced conditions confirms that the contaminant concentrations are not likely to pose an unacceptable risk either at present or in the future. Existing groundwater contamination is at low concentrations and is expected to naturally attenuate over time. The appropriate remedial action is to implement land-use controls on the source property and adjacent off-source property where groundwater contamination is present.

5.0 Data Collected During RMP Implementation

No further sampling or other data collection activities are proposed for the site. As such, this section is not applicable.

6.0 Land-Use Restrictions

As discussed in Section 3.0, the risk assessment for the Galaxy Cleaners site was based on the following assumption:

- Groundwater will not be utilized on the source property and one off-source property

Institutional controls will be implemented for the source property to ensure that groundwater will not be utilized. A notice will be placed on the deed for the off-source impacted property identifying the presence of groundwater contamination and citing regulations prohibiting the installation of a water supply well in a contaminated aquifer. Notices of Dry-Cleaning Solvent Remediation (NDCSRs) were prepared for the source property and adjacent off-source property. The NDCSR for the source property is included in Appendix C, and the NDCSR for the off-source property is included in Appendix D. A plat showing the locations and types of dry-cleaning solvent contamination is included as an exhibit to each NDCSR. The locations of dry-cleaning solvent contamination are the areas where contaminants have been detected above unrestrictive use standards.

7.0 Long-Term Stewardship Plan

The NDCSR for the source property contains a clause which requires the owner of the former Galaxy Cleaners source property to submit a notarized “Annual Certification of Land-Use Restrictions” to North Carolina Department of Environmental Quality (NCDEQ) on an annual basis certifying that the NDCSR remains recorded with the Register of Deeds and that land-use restrictions are being complied with. An example of such a notice is included in Appendix E.

8.0 RMP Implementation Schedule

Since the groundwater plume is stable and possible exposure to the contamination is managed through the NDCSRs, no additional site remediation activities are required to implement the RMP. A 30-day public comment period will be held to allow the community an opportunity to comment on the proposed strategy. Appendix F includes example documents that will be used to announce the public comment period in the local newspaper and to inform local officials, nearby property owners, and interested parties. Upon completion of the public comment period and final approval of the RMP, the NDCSRs will be filed with the Wake County Register of Deeds and will complete the RMP schedule.

9.0 Criteria for Demonstrating RMP Success

The RMP will be successfully implemented once the required NDCSRs have been executed and recorded with the Wake County Register of Deeds. The NDCSR for each property may, at the request of the owner of the property, be canceled by NCDEQ after the risk to public health and the environment associated with the dry-cleaning solvent contamination and any other contaminants included in the dry-cleaning solvent assessment and remediation agreement has been eliminated as a result of remediation of the property. If NCDEQ is notified of a change in site conditions, per the notification requirements detailed in the NDCSR, the RMP will be reviewed to determine if the site conditions have impacted the requirements set forth in the NDCSR and if changes are required. Enforcement of the RMP will be maintained through

receipt of the “Annual Certification of Land-Use Restrictions” from the property owner as part of the NDCSR requirements.

10.0 Contingency Plan if RMP Fails

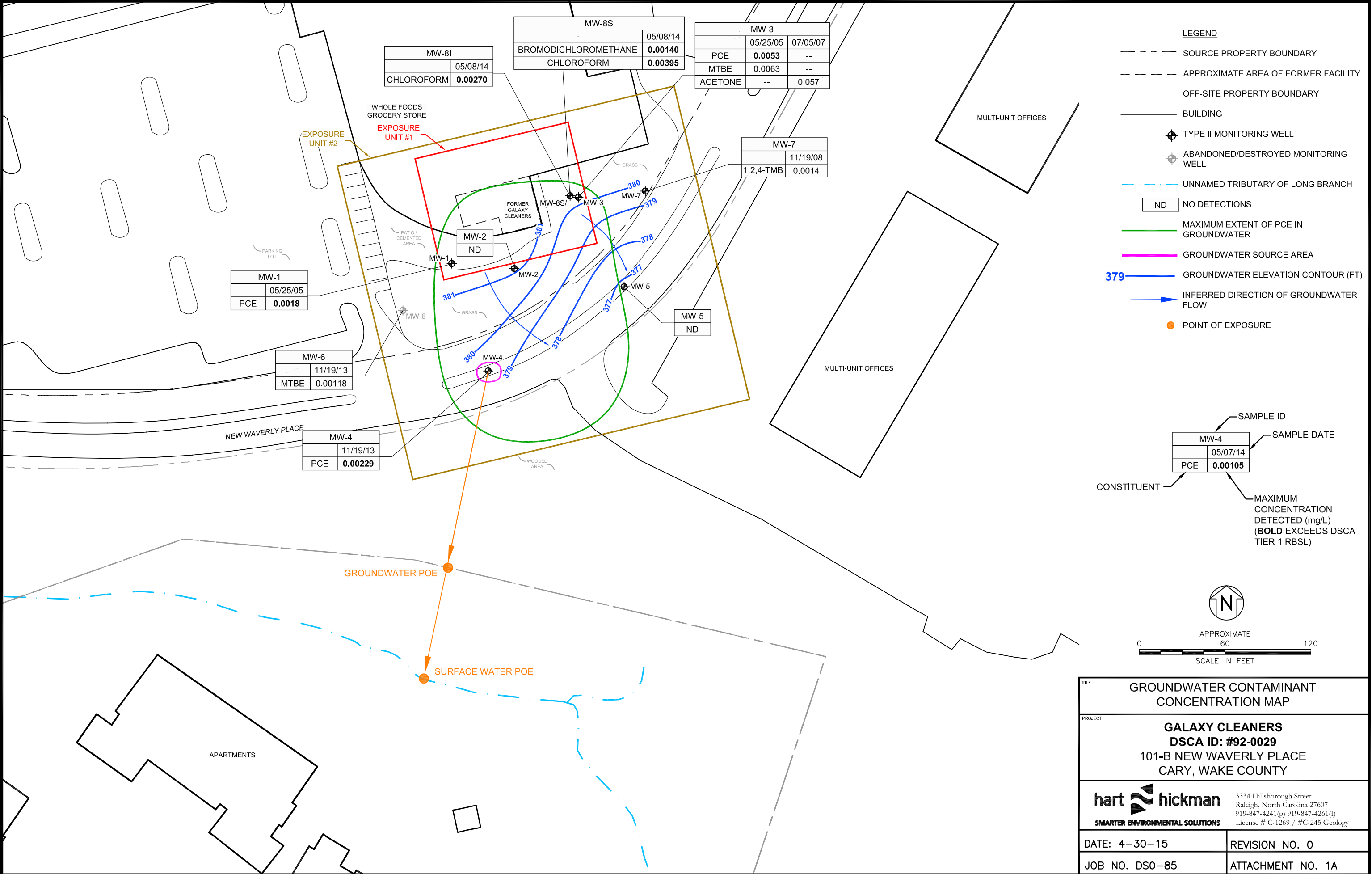
As discussed above, unless the DSCA Program is notified of a change in land-use conditions at the site, per the notification requirements detailed in this plan, the RMP will remain in effect until the RMP has met its objectives and is considered a success. Pursuant to N.C.G.S. 143-215.104K, if any of the land-use restrictions (LURs) set out in the NDCSR are violated, the owner of the site property at the time the LURs are violated, the owner’s successors and assigns, and the owner’s agents who directed or contracted for alteration of the site in violation of the LURs, shall be held liable for the remediation of all contaminants to unrestricted use standards.

11.0 Conclusions and Recommendations

H&H has prepared this RMP for the Galaxy Cleaners site on behalf of the DSCA Program. The results of the risk assessment indicated that contaminant concentrations at the site do not pose an unacceptable risk. The groundwater contaminant plume associated with the site appears to be stable or decreasing. This RMP specifies that the NDCSR requirements provide notification that land-use conditions observed during the risk assessment evaluation remain valid in the future. Based on the documentation contained in this report, H&H recommends issuance of a “No Further Action” letter.

Appendix A
Documentation of Plume Stability Evaluation

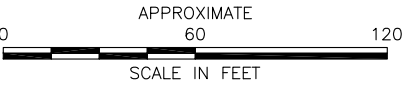
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LEGEND

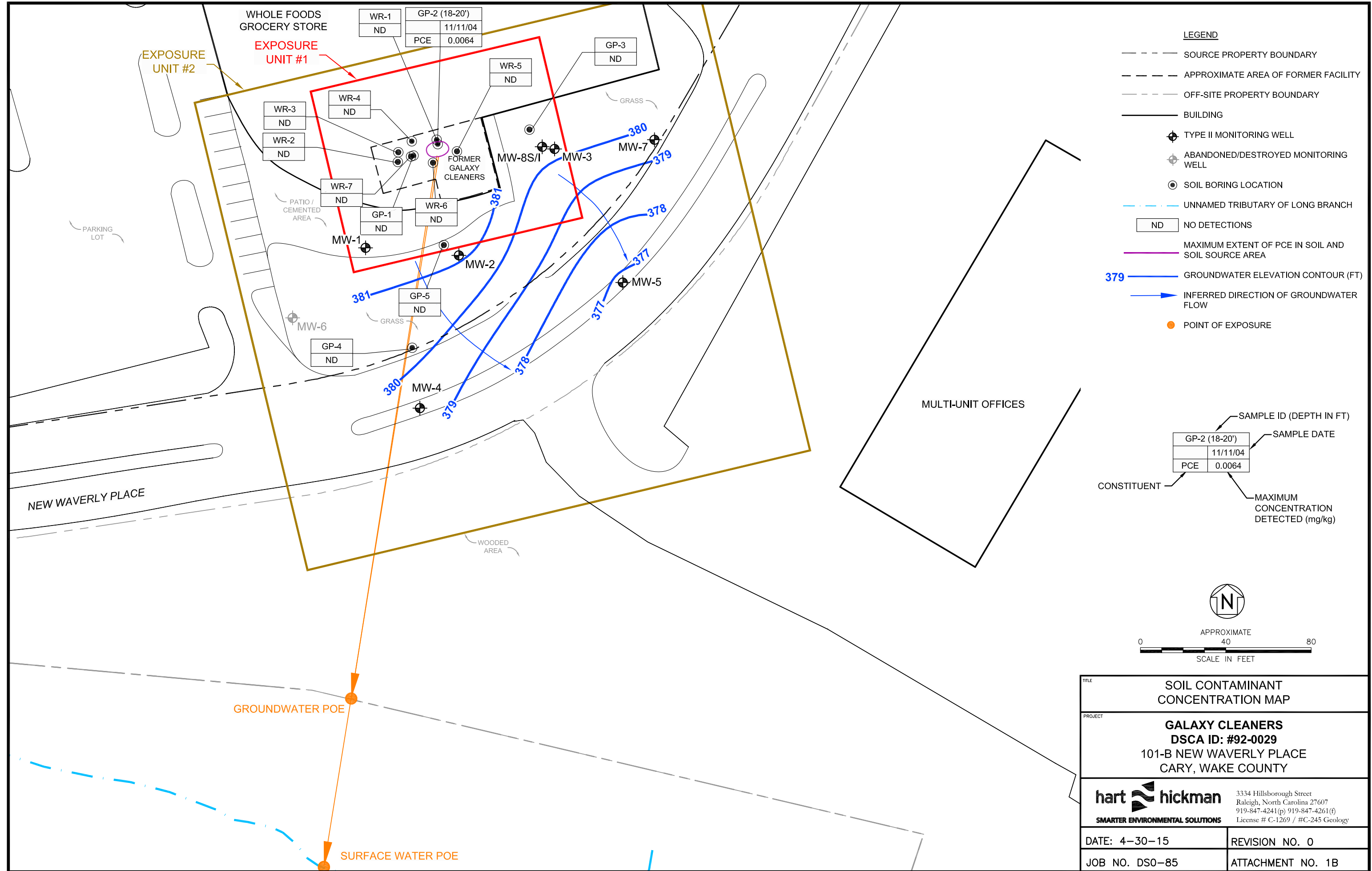
- SOURCE PROPERTY BOUNDARY
- APPROXIMATE AREA OF FORMER FACILITY
- OFF-SITE PROPERTY BOUNDARY
- BUILDING
- ⊕ TYPE II MONITORING WELL
- ⊕ ABANDONED/DESTROYED MONITORING WELL
- UNNAMED TRIBUTARY OF LONG BRANCH
- ND NO DETECTIONS
- MAXIMUM EXTENT OF PCE IN GROUNDWATER
- GROUNDWATER SOURCE AREA
- 379 --- GROUNDWATER ELEVATION CONTOUR (FT)
- INFERRED DIRECTION OF GROUNDWATER FLOW
- POINT OF EXPOSURE

SAMPLE ID	
MW-4	
SAMPLE DATE	
05/07/14	
CONSTITUENT	PCE
MAXIMUM CONCENTRATION DETECTED (mg/L)	
(BOLD EXCEEDS DSCA TIER 1 RBSL)	
0.00105	



TITLE	
GROUNDWATER CONTAMINANT CONCENTRATION MAP	
PROJECT	
GALAXY CLEANERS DSCA ID: #92-0029 101-B NEW WAVERLY PLACE CARY, WAKE COUNTY	
hart hickman SMARTER ENVIRONMENTAL SOLUTIONS	
3334 Hillsborough Street Raleigh, North Carolina 27607 919-847-4241(p) 919-847-4261(f) License # C-1269 / #C-245 Geology	
DATE: 4-30-15	REVISION NO. 0
JOB NO. DS0-85	ATTACHMENT NO. 1A

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SAMPLE ID (DEPTH IN FT)	
GP-2 (18-20')	
SAMPLE DATE	
11/11/04	
CONSTITUENT	PCE
	0.0064
MAXIMUM CONCENTRATION DETECTED (mg/kg)	

TITLE SOIL CONTAMINANT CONCENTRATION MAP	
PROJECT GALAXY CLEANERS DSCA ID: #92-0029 101-B NEW WAVERLY PLACE CARY, WAKE COUNTY	
hart hickman SMARTER ENVIRONMENTAL SOLUTIONS 3334 Hillsborough Street Raleigh, North Carolina 27607 919-847-4241(p) 919-847-4261(f) License # C-1269 / #C-245 Geology	
DATE: 4-30-15	REVISION NO. 0
JOB NO. DS0-85	ATTACHMENT NO. 1B

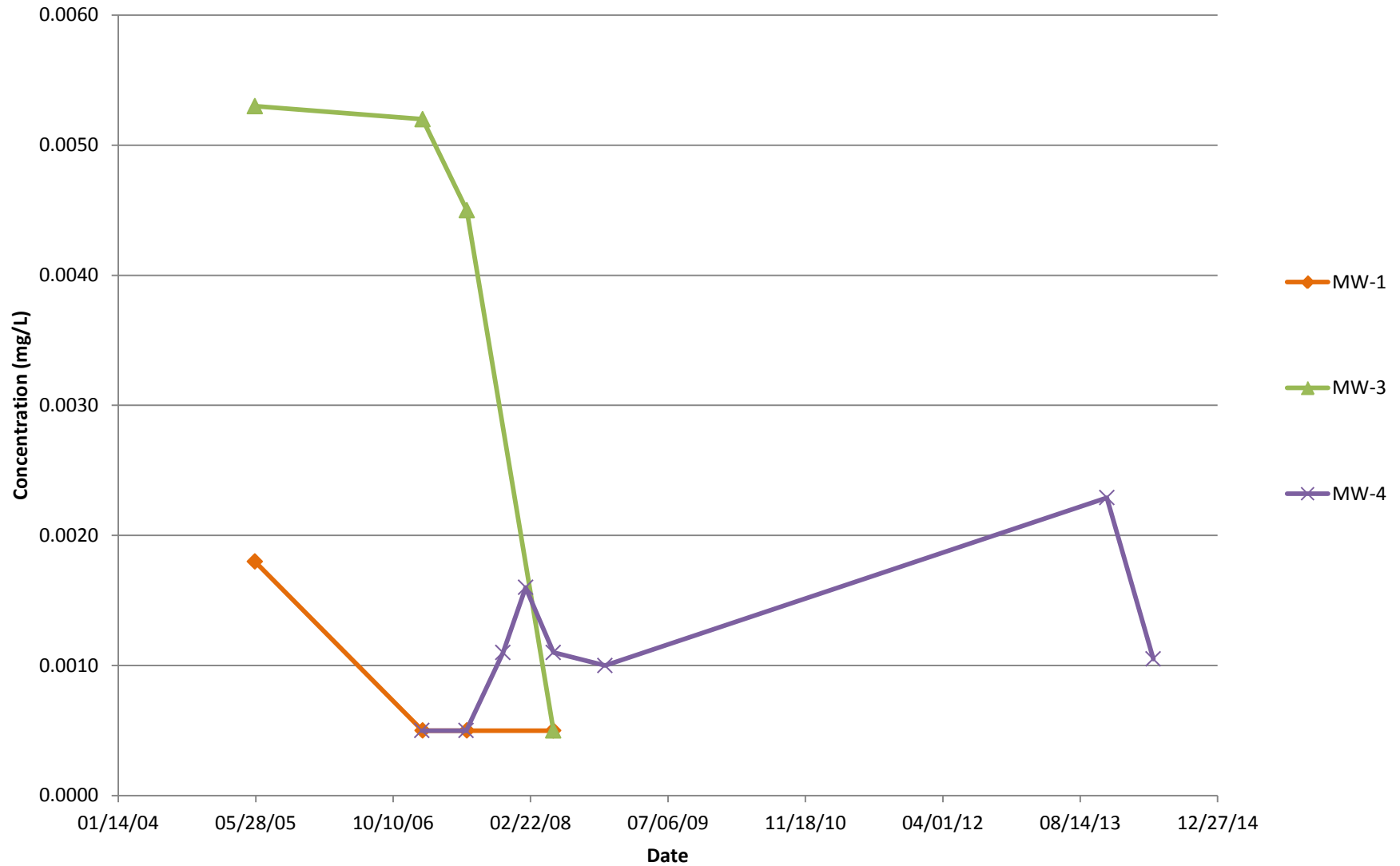
Table 8: Analytical Data for Groundwater **ADT 8**

DSCA ID No.: 92-0029																				
Groundwater Sampling Point	Sampling Date (mm/dd/yy)	Benzene	cis-1,2-Dichloroethylene	Ethylbenzene	Methyl tert-butyl ether (MTBE)	Naphthalene	Tetrachloroethylene	Toluene	trans-1,2-Dichloroethylene	Trichloroethylene	Vinyl chloride	Xylenes (total)	1,2,4-Trimethylbenzene	Acetone	Bromodichloromethane	Chloroform				
		[mg/L]																		
MW-1	05/25/05	ND	ND	ND	ND	--	0.0018	ND	ND	ND	ND	ND	--	ND	--	ND				
	01/25/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	07/05/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	05/15/08	<0.001	<0.001	<0.001	<0.001	<0.005	<0.001	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.05	--	<0.005				
MW-2	05/25/05	ND	ND	ND	ND	--	ND	ND	ND	ND	ND	ND	--	ND	--	ND				
	01/25/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	07/03/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	05/15/08	<0.001	<0.001	<0.001	<0.001	<0.005	<0.001	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.05	--	<0.005				
MW-3	05/25/05	ND	ND	ND	0.0063	--	0.0053	ND	ND	ND	ND	ND	--	0.0049 J	--	ND				
	01/25/07	--	--	--	0.0052	--	0.0052	--	--	<0.001	--	--	--	<0.05	--	--				
	07/05/07	--	--	--	0.0041	--	0.0045	--	--	<0.001	--	--	--	0.057	--	--				
	05/15/08	<0.001	<0.001	<0.001	<0.001	<0.005	<0.001	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.05	--	<0.005				
MW-4	01/23/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	07/03/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	11/14/07	<0.001	<0.001	<0.001	<0.001	<0.005	0.0011	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.005	--	<0.005				
	02/04/08	--	--	--	<0.001	--	0.0016	--	--	<0.001	--	--	--	<0.005	--	--				
	05/15/08	<0.001	<0.001	<0.001	<0.005	<0.005	0.0011	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.05	--	<0.005				
	11/19/08	<0.0010	<0.0010	<0.0010	<0.0010	<0.0050	0.0010	<0.0050	<0.0010	<0.0010	<0.0010	<0.0030	<0.0010	<0.050	<0.0010	<0.0050				
	11/19/13	<0.00100	<0.00100	<0.00100	<0.00100	<0.00500	0.00229	<0.00100	<0.00100	<0.00100	<0.00100	<0.00300	<0.00100	<0.00500	<0.00100	<0.00100				
	05/07/14	<0.00100	<0.00100	<0.00100	<0.00100	<0.00500	0.00105	<0.00100	<0.00100	<0.00100	<0.00100	<0.00300	<0.00100	<0.0250	<0.00100	<0.00100				
MW-5	01/23/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	07/03/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	11/14/07	<0.001	<0.001	<0.001	<0.001	<0.005	<0.001	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.005	--	<0.005				
	02/05/08	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.005	--	--				
	05/15/08	<0.001	<0.001	<0.001	<0.001	<0.005	<0.001	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.05	--	<0.005				
	11/19/08	<0.0010	<0.0010	<0.0010	<0.0010	<0.0050	<0.0010	<0.0050	<0.0010	<0.0010	<0.0010	<0.0030	<0.0010	<0.050	<0.0010	<0.0050				
	11/19/13	<0.00100	<0.00100	<0.00100	<0.00100	<0.00500	<0.00100	<0.00100	<0.00100	<0.00100	<0.00100	<0.00300	<0.00100	<0.00500	<0.00100	<0.00100				
	05/07/14	<0.00100	<0.00100	<0.00100	<0.00100	<0.00500	<0.00100	<0.00100	<0.00100	<0.00100	<0.00100	<0.00300	<0.00100	<0.0250	<0.00100	<0.00100				

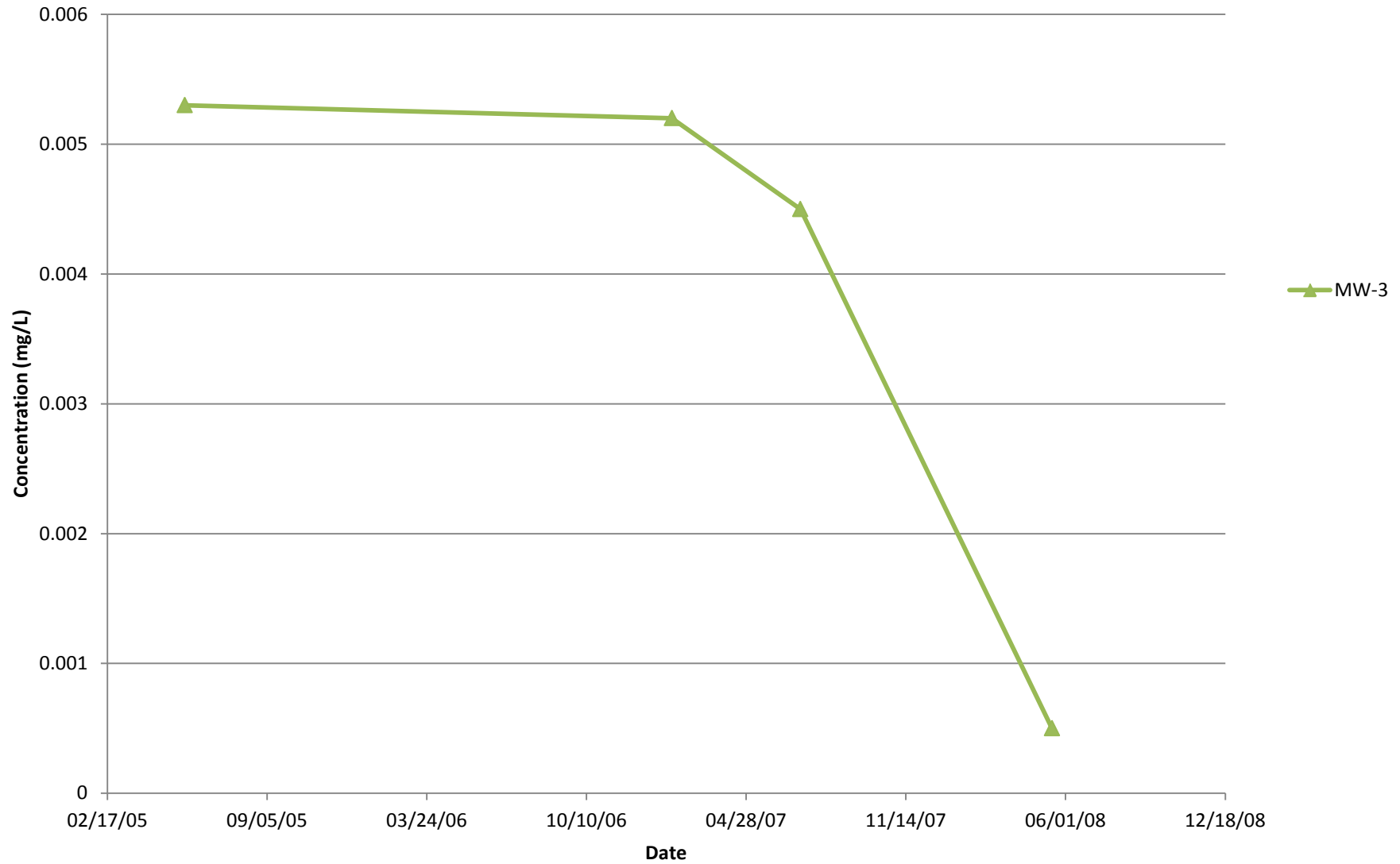
Table 8: Analytical Data for Groundwater **ADT 8**

DSCA ID No.: 92-0029																				
Groundwater Sampling Point	Sampling Date (mm/dd/yy)	Benzene	cis-1,2-Dichloroethylene	Ethylbenzene	Methyl tert-butyl ether (MTBE)	Naphthalene	Tetrachloroethylene	Toluene	trans-1,2-Dichloroethylene	Trichloroethylene	Vinyl chloride	Xylenes (total)	1,2,4-Trimethylbenzene	Acetone	Bromodichloromethane	Chloroform				
[mg/L]																				
MW-6	01/17/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	07/02/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	11/14/07	<0.001	<0.001	<0.001	<0.001	<0.005	<0.001	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.005	--	<0.005				
	02/04/08	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.005	--	--				
	05/14/08	<0.001	<0.001	<0.001	<0.001	<0.005	<0.001	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.05	--	<0.005				
	11/19/08	<0.0010	<0.0010	<0.0010	<0.0010	<0.0050	<0.0010	<0.0050	<0.0010	<0.0010	<0.0010	<0.0030	<0.0010	<0.050	<0.0010	<0.0050				
	11/19/13	<0.00100	<0.00100	<0.00100	0.00118	<0.00500	<0.00100	<0.00100	<0.00100	<0.00100	<0.00100	<0.00300	<0.00100	<0.00500	<0.00100	<0.00100				
MW-7	01/17/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	07/03/07	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.05	--	--				
	11/14/07	<0.001	<0.001	<0.001	<0.001	<0.005	<0.001	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.005	--	<0.005				
	02/05/08	--	--	--	<0.001	--	<0.001	--	--	<0.001	--	--	--	<0.005	--	--				
	05/15/08	<0.001	<0.001	<0.001	<0.001	<0.005	<0.001	<0.005	<0.001	<0.001	<0.001	<0.003	--	<0.05	--	<0.005				
	11/19/08	<0.0010	<0.0010	<0.0010	<0.0010	<0.0050	<0.0010	<0.0050	<0.0010	<0.0010	<0.0010	<0.0030	0.0014	<0.050	<0.0010	<0.0050				
	11/19/13	<0.00100	<0.00100	<0.00100	<0.00100	<0.00500	<0.00100	<0.00100	<0.00100	<0.00100	<0.00100	<0.00300	<0.00100	<0.00500	<0.00100	<0.00100				
	05/07/14	<0.00100	<0.00100	<0.00100	<0.00100	<0.00500	<0.00100	<0.00100	<0.00100	<0.00100	<0.00100	<0.00300	<0.00100	<0.0250	<0.00100	<0.00100				
MW-8S	05/08/14	<0.00100	<0.00100	<0.00100	<0.00100	<0.00500	<0.00100	<0.00100	<0.00100	<0.00100	<0.00100	<0.00300	<0.00100	<0.0250	0.00140	0.00395				
MW-8I	05/08/14	<0.00100	<0.00100	<0.00100	<0.00100	<0.00500	<0.00100	<0.00100	<0.00100	<0.00100	<0.00100	<0.00300	<0.00100	<0.0250	<0.00100	0.00270				
DSCA Tier 1 RBSL (or NC 2L Standard)		0.001	0.07	0.003	0.02	0.004	0.0007	0.6	0.076	0.001	0.00003	0.094	0.0058	6	0.0006	0.00073				
Notes: 1. Bold concentrations exceed DSCA Tier 1 RBSLs (or NC 2L Standard, if RBSL not established). 2. -- = No historical data available; ND = Not Detected 3. J flag indicates estimated concentration below laboratory reporting limit and above method detection limit.																				

PCE Concentration vs. Time
MW-1, MW-3, & MW-4
Galaxy Cleaners, Cary, Wake County
DSCA ID #92-0029



**PCE Concentration vs. Time
(MW-3)
Galaxy Cleaners, Cary, Wake County
DSCA ID #92-0029**



Non-detect values are graphed at half the reporting limit

**PCE Concentration vs. Time
(MW-1 & MW-4)
Galaxy Cleaners, Cary, Wake County
DSCA ID #92-0029**



Appendix B
Level 1 Ecological Risk Assessment Checklists

Level 1 Ecological Risk Assessment
Checklist A for Potential Receptors and Habitat
DSCA # 92-0029

1. Are there any navigable water bodies or tributaries to a navigable water body on or within one-half mile of the site? *Yes, there is a tributary within ½ mile of the site that eventually leads to a navigable water body.*
2. Are there any water bodies anywhere on or within one-half mile of the site? *Yes, there is a small perennial stream located approximately 300 feet to the south of the site.*
3. Are there any wetland¹ areas such as marshes or swamps on or within one-half mile of the site? *No marshes or swamps, but the tributary referenced in items 1 and 2, and ponds located further to the south would likely be classified as wetlands.*
4. Are there any sensitive environmental areas² on or within one-half mile of the site? *No, see attached list of sensitive environmental areas.*
5. Are there any areas on or within one-half mile of the site owned or used by local tribes? *No.*
6. Are there any habitat, foraging area or refuge by rare, threatened, endangered, candidate and/or proposed species (plants or animals), or any otherwise protected species on or within one-half mile of the site? *Not likely.*
7. Are there any breeding, roosting or feeding areas by migratory bird species on or within one-half mile of the site? *Not likely.*
8. Are there any ecologically³, recreationally or commercially important species on or within one-half mile of the site? *Not likely.*
9. Are there any threatened and/or endangered species (plant or animal) on or within one-half mile of the site? *No.*

If the answer is “Yes” to any of the above questions, then complete Level 1 Ecological Risk Assessment, Checklist B for Potential Exposure Pathways.

¹Wetlands are defined in 40 CFR 232.2 as “areas inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances does support, a prevalence of vegetation typically adapted for life in saturated soil conditions.” The sources to make the determination whether or not wetland areas are present may include, but not limited to, national wetland inventory available at <http://nwi.fw.gov> , federal or state agency, and USGS topographic maps.

²Areas that provide unique and often protected habitat for wildlife species. These areas typically used during critical life stages such as breeding, hatching, rearing or young and overwintering. Refer to Attachment 1 for examples of sensitive environments.

³Ecologically important species include populations of species which provide a critical food resource for higher organisms. Ecologically important species include pest and opportunistic species that populate an area if they serve as a food source for other species, but do not include domesticated animals or plants/animals whose existence is maintained by continuous human interventions.

Level 1 Ecological Risk Assessment
Checklist B for Potential Exposure Pathways
DSCA # 92-0029

- 1A. Can chemicals associated with the site leach, dissolve, or otherwise migrate to groundwater? **Yes**
- 1B. Are chemicals associated with the site mobile in groundwater? **Yes**
- 1C. Does groundwater from the site discharge to ecological receptor habitat? ***Depends on the definition of ecological receptor habitat.***

Question 1. Could chemicals associated with the site reach ecological receptors through groundwater? ***Not likely. PCE concentrations are very low, have been very stable over time, and do not appear to migrating further downgradient.***

- 2A. Are chemicals present in surface soils on the site? **No**
- 2B. Can chemicals be leached from or be transported by erosion of surface soils on the site? **No**

Question 2. Could chemicals associated with the site reach ecological receptors through runoff or erosion? ***No, the only soil contamination detected occurs at depth below dry cleaning facility and is not subject to erosion.***

- 3A. Are chemicals present in surface soil or on the surface of the ground? **No**
- 3B. Are potential ecological receptors on the site? **No**

Question 3. Could chemicals associated with the site reach ecological receptors through direct contact? ***No, the only soil contamination detected occurs at depth below dry cleaning facility and is not subject to direct contact.***

- 4A. Are chemicals on the site volatile? **Yes**
- 4B. Could chemicals on the site be transported in air as dust or particulate matter? **No**

Question 4. Could chemicals associated with the site reach ecological receptors through inhalation of volatilized chemicals or adhered chemicals to dust in ambient air in subsurface burrows? ***No, the only soil contamination detected occurs at depth below dry cleaning facility and is not subject to transport in air as dust or particulate matter. Do not expect that burrowing animals would live under a building slab, due to the lack of topsoil and the biota that live therein.***

- 5A. Is Non-Aqueous Phase Liquid (NAPL) present at the site? **No**
- 5B. Is NAPL migrating? **No**
- 5C. Could NAPL discharge occur where ecological receptors are found? **No**

Question 5. Could chemicals associated with the site reach ecological receptors through migration of NAPL? **No**

- 6A. Are chemicals present in surface and shallow subsurface soils or on the surface of the ground? **No**
- 6B. Are chemicals found in soil on the site taken up by plants growing on the site. **No**
- 6C. Do potential ecological receptors on or near the site feed on plants (e.g. grasses, shrubs, forbs, trees, etc.) found on the site? ***Depends on the definition of ecological receptor. Are insects, soil bacteria, worms, etc. considered ecological receptors?***
- 6D. Do chemicals found on the site bioaccumulate. **No**

Question 6. Could chemicals associated with the site reach ecological receptors through direct ingestion of soil, plants, animals or contaminants. ***No, the only soil contamination detected occurs at depth below dry cleaning facility and it is not likely that the low concentrations identified would be consumed by an organism that would be eaten by another organism and find its way into the food chain.***

If the answer to one or more of the above six questions is “Yes”, the DENR may require further assessment to determine whether the site poses an unacceptable risk to ecological receptors.

Attachment 1
Examples of Sensitive Environments
DSCA #92-0029

Examples of environmentally sensitive areas include, but are not limited to, the following:

- National parks and national monuments, *None near site*
- Designated or administratively proposed federal wilderness areas, *None near site*
- National preserved, *None near site*
- National or state wildlife refuges, *None near site*
- National lakeshore recreational areas, *None near site*
- Federal land designated for protection of natural ecosystems, *None near site*
- State land designated for wildlife or game management, *None near site*
- State designated natural areas, *None near site*
- Federal or state designated scenic or wild river, *None near site*
- All areas that provide or could potentially provide critical habitat for state and federally listed threatened or endangered species, those species that are currently petitioned for listing, and species designated by other agencies as sensitive or species of concern, *None near site*
- Marine sanctuary, *None near site*
- Areas identified under the coastal zone management act, *None near site*
- Sensitive areas identified under the national estuary program or near coastal waters program, *None near site*
- Critical areas identified under the clean lakes program,
- National seashore recreational area, *None near site*
- Habitat known to be used by federal designated or proposed endangered or threatened species, *None near site*
- Unit of coastal barrier resources system, *None near site*
- Coastal barrier (undeveloped), *None near site*
- Spawning areas critical for the maintenance of fish/shellfish species within river, lake, or coastal tidal waters, *None near site*
- Migratory pathways and feeding areas critical for maintenance of anadromous fish species within river reaches or areas in lakes or coastal tidal waters in which the fish spend extended periods of time, *None near site*
- Terrestrial areas utilized for breeding by large or dense aggregations of animals, *None near site*
- National river reach designated as recreational, *None near site*
- Habitat known to be used by state designated endangered or threatened species, *None near site*
- Habitat known to be used by species under review as to its federal endangered or threatened state, *None near site*
- Coastal barrier (partially developed), *None near site*
- Particular areas, relatively small in size, important to maintenance of unique biotic communities, *None near site*
- State designated areas for protection or maintenance of aquatic life, and *None near site*
- Wetlands. *None near site*

Appendix C
Source Property
Notice of Dry-Cleaning Solvent Remediation

NOTICE OF DRY-CLEANING SOLVENT REMEDIATION

Property Owner: NWWP LP

Recorded in Book _____, Page _____

Associated plat recorded in Plat Book _____, Page _____

This documentary component of a Notice of Dry-Cleaning Solvent Remediation (hereinafter "Notice") is hereby recorded on this ____ day of _____, 20____ by NWWP LP (hereinafter "Property Owner"). The survey plat component of the Notice is being recorded concurrently with this documentary component. The real property (hereinafter "Property") which is the subject of this Notice is located at 2001 Kildaire Road, Cary, Wake County, North Carolina, Parcel Identification Number (PIN) 0762630729.

The Property is contaminated with dry-cleaning solvent, as defined at North Carolina General Statutes (hereinafter "N.C.G.S."), Section (hereinafter "§") 143-215.104B(b)(9) and other contaminants, and is one of two parcels that make up the dry-cleaning solvent contamination site (hereinafter "Contamination Site"). This Notice has been approved by the North Carolina Department of Environmental Quality, or its successor in function (hereinafter "DEQ") under the authority of the Dry-Cleaning Solvent Cleanup Act of 1997, as amended, N.C.G.S. § 143-215.104A *et seq.* (hereinafter "DSCA"), and is required to be filed in the Register of Deeds' Office in the county or counties in which the land is located, pursuant to NCGS § 143-215.104M. A Notice will be recorded separately in each chain of title of the Contamination Site.

Soil and groundwater at the Property are contaminated with dry-cleaning solvents associated with dry-cleaning operations at the former Galaxy Cleaners (DSCA Site DC920029) located at 101-B New Waverly Place in the Waverly Place Shopping Center. Dry-cleaning operations were conducted on the Property from approximately the mid-1990s to mid-2010.

Pursuant to N.C.G.S. § 143-215.104M, this Notice is being filed in order to reduce or eliminate the danger to public health or the environment posed by the Property. Attached hereto as **Exhibit A** is a reduction, to 8 1/2" x 11", of the survey plat component of the Notice required by N.C.G.S. § 143-215.104M. The survey plat has been prepared and certified by a professional land surveyor and meets the requirements of G.S. 47-30, and contains the following information required by N.C.G.S. § 143-215.104M:

(1) A description of the location and dimensions of the areas of potential environmental concern with respect to permanently surveyed benchmarks; and

(2) The type, location and quantity of regulated dry-cleaning solvent contamination and other contaminants known to exist on the Property.

Attached hereto as **Exhibit B**, is a legal description of the Property that would be sufficient as a description in an instrument of conveyance.

Pursuant to NCGS § 143-215.104M, a certified copy of this Notice must be filed within 15 days of receipt of DEQ's approval of the Notice or the effective date of the dry-cleaning solvent remediation agreement, whichever is later. Pursuant to NCGS § 143-215.104M, the copy of the Notice certified by DEQ must be recorded in the grantor index under the names of the owners of the land.

LAND-USE RESTRICTIONS

NCGS § 143-215.104M requires that the Notice identify any restrictions on the current and future use of the Property that are necessary or useful to maintain the level of protection appropriate for the designated current or future use of the Property and that are designated in the dry-cleaning remediation agreement. The restrictions shall remain in force in perpetuity unless canceled by the Secretary of DEQ, or his/her designee, after the hazards have been eliminated, pursuant to NCGS § 143-215.104M. Those restrictions are hereby imposed on the Property, and are as follows:

1. Without prior written approval from DEQ, the Property shall not be used for:
 - a. child care centers or schools; or
 - b. mining or extraction of coal, oil, gas or any mineral or non-mineral substances.
2. No activities that encounter, expose, remove or use groundwater (for example, installation of water supply wells, fountains, ponds, lakes or swimming pools that use groundwater, or construction or excavation activities that encounter or expose groundwater) may occur on the Property without prior approval of DEQ.
3. In January of each year, on or before January 31st, the owner of any portion of the Property shall submit a notarized Annual Certification of Land-Use Restrictions to DEQ certifying that this Notice remains recorded at the Register of Deeds' office, and that the land-use restrictions are being complied with.
4. No person conducting environmental assessment or remediation at the Property or involved in determining compliance with applicable land-use restrictions, at the direction of, or pursuant to a permit or order issued by DEQ may be denied access to the Property for the purpose of conducting such activities.
5. The owner of any portion of the Property shall cause the instrument of any sale, lease, grant, or other transfer of any interest in the property to include a provision expressly requiring the lessee, grantee, or transferee to comply with this Notice. The failure to include such a provision shall not affect the validity or applicability of any land-use restriction in this Notice.

EASEMENT (RIGHT OF ENTRY)

The property owner grants and conveys to DEQ, its agents, contractors, and employees, and any person performing pollution remediation activities under the direction of DEQ, access at reasonable times and under reasonable security requirements to the Property to determine and monitor compliance with the land-use restrictions set forth in this Notice. Such investigations and actions are necessary by DEQ to ensure that use, occupancy, and activities of and at the Property are consistent with the land-use restrictions and to ensure that the structural integrity and continued effectiveness of any engineering controls (if appropriate) described in the Notice are maintained. Whenever possible, at least 48 hours advance notice will be given to the Property Owner prior to entry. Advance notice may not always be possible due to conditions such as response time to complaints and emergency situations.

REPRESENTATIONS AND WARRANTIES

The Property Owner hereby represents and warrants to the other signatories hereto:

- i) that the Property Owner is the sole owner of the Property; **or** that the Property Owner has provided to DEQ the names of all other persons that own an interest in or hold an encumbrance on the Property and have notified such persons of the Property Owner's intention to enter into this Notice;
- ii) that the Property Owner has the power and authority to enter into this Notice, to grant the rights and interests herein provided and to carry out all obligations hereunder; and
- iii) that this Notice will not materially violate or contravene or constitute a material default under any other agreement, document or instrument to which the Property Owner is a party or by which the Property Owner may be bound or affected.

ENFORCEMENT

The above land-use restrictions shall be enforceable without regard to lack of privity of estate or contract, lack of benefit to particular land, or lack of any property interest in particular land. The land-use restrictions shall be enforced by any owner of the Property. The land-use restrictions may also be enforced by DEQ through the remedies provided in NCGS § 143-215.104P or by means of a civil action; by any unit of local government having jurisdiction over any part of the Property; and by any person eligible for liability protection under the DSCA who will lose liability protection if the restrictions are violated. Any attempt to cancel any or all of this Declaration without the approval of the Secretary of DEQ (or its successor in function), or his/her delegate, shall be subject to enforcement by DEQ to the full extent of the law. Failure by any party required-or authorized to enforce any of the above restrictions shall in no event be deemed a waiver of the right to do so thereafter as to the same violation or as to one occurring prior or subsequent thereto.

If a land-use restriction set out in this Notice required under NCGS § 143-215.104.M is violated, the owner of the Property at the time the land-use restriction is violated, the owner's successors and assigns, and the owner's agents who direct or contract for alteration of the contamination site in violation of a land-use restriction shall be liable for remediation of all contaminants to unrestricted use standards.

FUTURE SALES, LEASES, CONVEYANCES AND TRANSFERS

When any portion of the Property subject to this Notice is sold, leased, conveyed or transferred, the deed or other instrument of transfer shall contain in the description section, in no smaller type than that used in the body of the deed or instrument, (1) a statement that the property has been contaminated with dry-cleaning solvent and, if appropriate, cleaned up under the Act and (2) a reference by book and page to the recordation of this Notice.

The Property Owner shall notify DEQ within fourteen (14) calendar days of the effective date of any conveyance, grant, gift, or other transfer, whole or in part, of the Property Owner's interest in the Property. This notification shall include the name, business address and phone number of the transferee and the expected date of transfer.

The Property Owner shall notify DEQ within thirty (30) days following the petitioning or filing of any document by any person initiating a rezoning of the Property that would change the base zone of the Property.

PROPERTY OWNER SIGNATURE

IN WITNESS WHEREOF, Property Owner has caused this instrument to be duly executed this ____ day of _____, 20__.

NWWP LP

By:

Name of contact

STATE OF _____
COUNTY OF _____

I, _____, a Notary Public of the county and state aforesaid, certify that _____ personally came before me this day and acknowledged that he/she is a Partner of NWWP LP, a Delaware limited partnership, and that by authority duly given and as the act of the company, the foregoing Notice of Dry-Cleaning Solvent Remediation was signed in its name by him.

WITNESS my hand and official stamp or seal, this ____ day of _____, 20__.

Name typed or printed
Notary Public

My Commission expires: _____
[Stamp/Seal]

APPROVAL AND CERTIFICATION

The foregoing Notice of Dry-Cleaning Solvent Remediation is hereby approved and certified.

North Carolina Department of Environmental Quality

By:

Jim Bateson, LG
Chief, Superfund Section
Division of Waste Management

Date

LIMITED POWER OF ATTORNEY

I _____ “Property Owner”, do hereby grant a limited power of attorney to DEQ and to DEQ’s independent contractors, as follows:

DEQ and DEQ’s independent contractors shall have the limited power of attorney to record this Notice, including its documentary and survey plat components, in accordance with N.C.G.S. § 143-215.104M on my “Property Owner” behalf. This limited power of attorney shall terminate upon completion of the recordation of the Notice.

Signature of Property Owner _____

Dated this ____ day of _____, 20__.

STATE OF _____
COUNTY OF _____

I, _____, a Notary Public, do hereby certify that
_____ personally appeared before me this day and
signed this “Limited Power of Attorney”.

WITNESS my hand and official stamp or seal, this ____ day of _____, 20__.

Name typed or printed
Notary Public

My Commission expires: _____
[Stamp/Seal]

CERTIFICATION OF REGISTER OF DEEDS

The foregoing documentary component of the Notice of Dry-Cleaning Solvent Remediation, and the associated plat, are certified to be duly recorded at the date and time, and in the Book and on the Page(s), shown on the first page hereof.

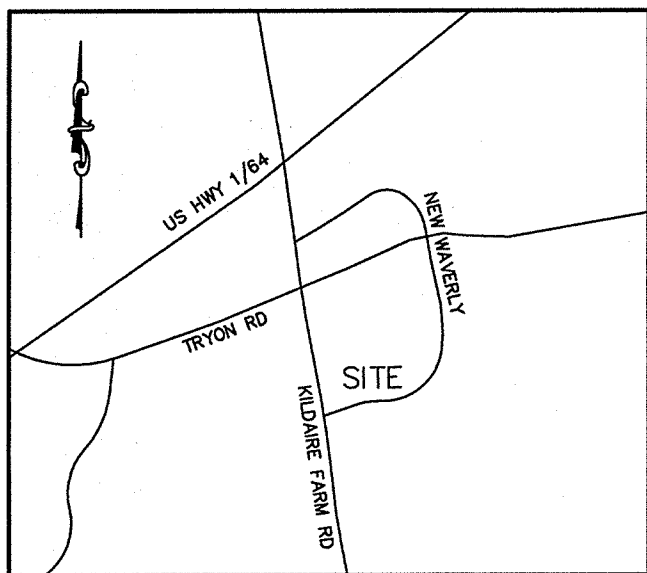
Register of Deeds for Wake County

By: _____
(signature)

Date

Name typed or printed: _____
Deputy/Assistant Register of Deeds

EXHIBIT A
REDUCTION OF SURVEY PLAT



VICINITY MAP
N.T.S.

OWNERS CERTIFICATE:

I ACKNOWLEDGE THAT I HAVE FULL AUTHORITY TO LEGALLY EXECUTE A DEED FOR THIS PROPERTY.

SIGNATURE _____ DATE _____

STATE OF _____
COUNTY OF _____

I, _____, A NOTARY PUBLIC OF SAID COUNTY AND STATE, DO HEREBY CERTIFY THAT PERSONALLY APPEAR AND SIGN BEFORE ME THIS THE _____ DAY OF _____, 20____.

NOTARY PUBLIC (SIGNATURE) _____

MY COMMISSION EXPIRES _____

N.C.G.S. MONUMENT
"DOWNS"
NAD 83 COORD.
N=724054.509'
E=2509743.195'
ELEV.=377.51'

N82°23'04"W
6316.78'
CSF=0.99989372283

VRS SURVEY TIE:

ALL BEARINGS, DISTANCES AND COORDINATES SHOWN HEREON ARE LOCALIZED (GROUND) NAD 83 (2011 HARN ADJUSTMENT) HORIZONTAL INFORMATION (UNLESS NOTED OTHERWISE), BASED UPON THE NORTH CAROLINA STATE PLANE COORDINATE SYSTEM, WITH NAVD 88 ELEVATIONS. THE N.C. STATE PLANE COORDINATES FOR CONTROL POINTS #1003, & 1006, SHOWN HEREON WERE ESTABLISHED UTILIZING GLOBAL POSITIONING SYSTEMS (GPS) IN CONJUNCTION WITH THE NORTH CAROLINA GEODETIC SURVEY'S VIRTUAL REFERENCE SYSTEM (VRS), WHICH IS BASED UPON THE CONTINUALLY OPERATING REFERENCE STATIONS (CORS). THE VRS SURVEY TIE WAS PERFORMED ON SEPTEMBER 9, 2014. ALL MEASUREMENTS SHOWN HEREON ARE REPORTED IN U.S. SURVEY FEET UNLESS NOTED OTHERWISE.

GROUNDWATER IN WELLS MW-1, MW-3, MW-4, MW-8S, AND MW-8I EXCEEDED THE APPLICABLE 2L WATER QUALITY STANDARDS (15A NCAC 2L.0200) FOR ONE OR MORE OF THE FOLLOWING CONTAMINANTS: TETRACHLOROETHYLENE AND BROMODICHLOROMETHANE.

"N.C.G.S. 143-215.104(d) REQUIRES THAT WHEN PROPERTY FOR WHICH A NOTICE OF DRY-CLEANING SOLVENT REMEDIATION HAS BEEN FILED IS SOLD, LEASED, CONVEYED OR TRANSFERRED, THE DEED OR OTHER INSTRUMENT OF TRANSFER SHALL CONTAIN IN THE DESCRIPTION SECTION, IN NO SMALLER TYPE THAN THAT USED IN THE BODY OF THE DEED OR INSTRUMENT, A STATEMENT THAT THE PROPERTY HAS BEEN CONTAMINATED WITH DRY-CLEANING SOLVENT AND, IF APPROPRIATE, CLEANED UP UNDER THIS PART. USE THE FOLLOWING STATEMENT TO SATISFY N.C.G.S. 143-215.104(d):

THIS PROPERTY HAS BEEN CONTAMINATED WITH DRY-CLEANING SOLVENT. A NOTICE OF DRY-CLEANING SOLVENT REMEDIATION IS RECORDED IN THE WILSON COUNTY REGISTER OF DEEDS' OFFICE AT: _____, PAGE _____.

QUESTIONS CONCERNING THIS MATTER MAY BE DIRECTED TO THE NORTH CAROLINA DIVISION OF WASTE MANAGEMENT, SUPERFUND SECTION, DRYCLEANING SOLVENT CLEANUP ACT (DSCA) PROGRAM, OR ITS SUCCESSOR IN FUNCTION. 1646 MAIL SERVICE CENTER, RALEIGH, NC 27699-1646.

APPROVED FOR THE PURPOSES OF N.C.G.S. 143-215.104M

JIM BATESON, LG
CHIEF, SUPERFUND SECTION
DIVISION OF WASTE MANAGEMENT
NORTH CAROLINA
WAKE COUNTY

I, _____, A NOTARY PUBLIC OF _____ COUNTY AND STATE OF _____ DO HEREBY CERTIFY THAT _____ DID PERSONALLY APPEAR & SIGN BEFORE ME THIS THE _____ DAY OF _____, 20____.

NOTARY PUBLIC (SIGNATURE) _____

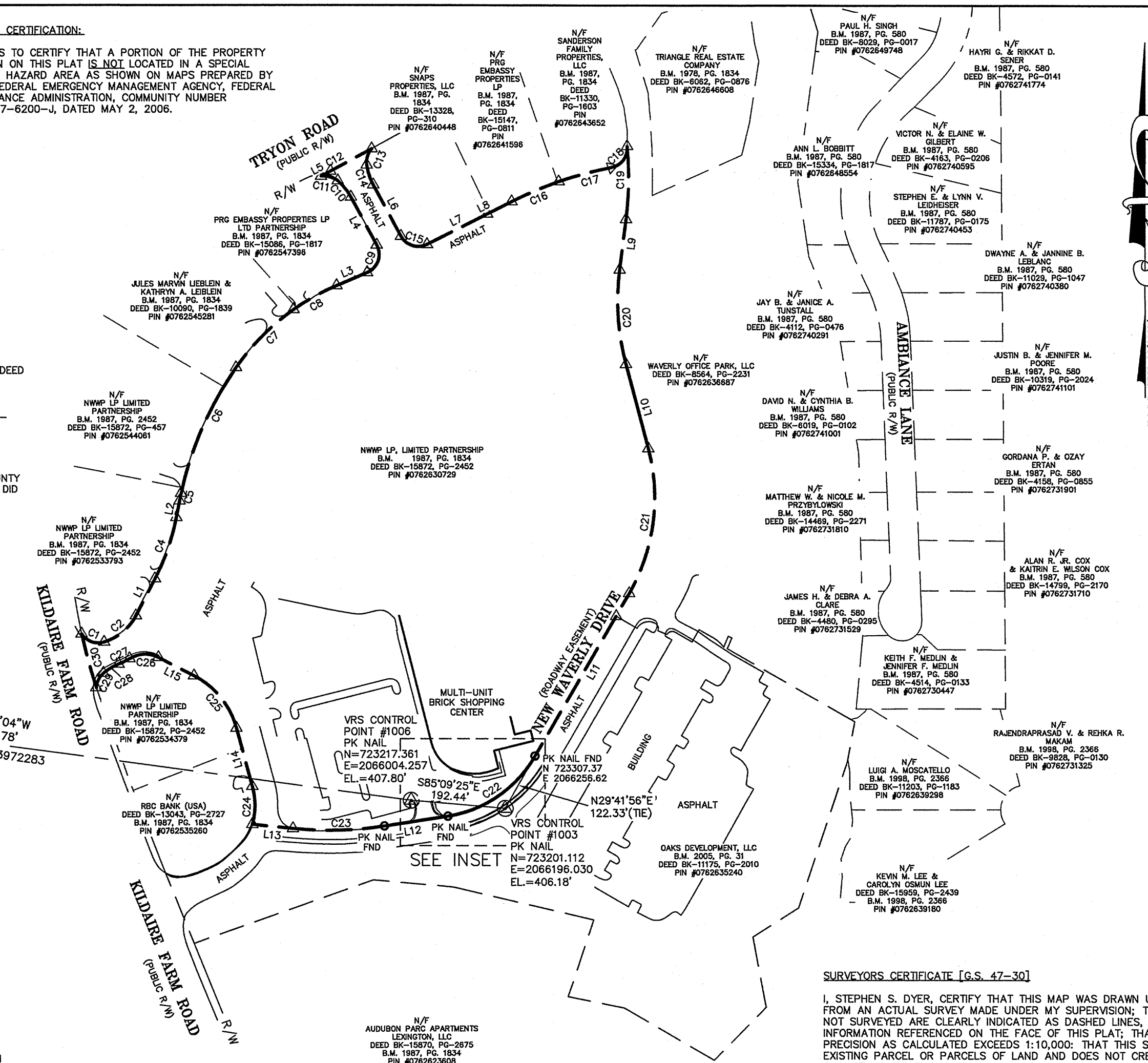
MY COMMISSION EXPIRES _____

THE DOCUMENTARY COMPONENT OF THIS NOTICE OF DRY-CLEANING SOLVENT REMEDIATION, LIMITING THE USES OF THIS PROPERTY IS RECORDED AT:

DEED BOOK _____ PAGE _____
AND _____

FLOOD CERTIFICATION:

THIS IS TO CERTIFY THAT A PORTION OF THE PROPERTY SHOWN ON THIS PLAT IS NOT LOCATED IN A SPECIAL FLOOD HAZARD AREA AS SHOWN ON MAPS PREPARED BY THE FEDERAL EMERGENCY MANAGEMENT AGENCY, FEDERAL INSURANCE ADMINISTRATION, COMMUNITY NUMBER 372007-6200-J, DATED MAY 2, 2006.



CURVE TABLE				
Curve #	Length	Radius	Bearing	Chord
C1	52.30	40.00	S69°44'50"E	48.65
C2	86.62	109.00	N50°02'10"E	84.36
C4	132.34	489.00	N19°11'11"E	131.90
C5	15.70	714.00	S11°43'58"W	15.70
C6	223.10	714.00	S21°18'51"W	222.19
C7	166.87	474.99	S45°00'03"W	166.01
C8	100.49	474.99	S61°07'33"W	100.30
C9	66.79	40.00	N19°20'45"E	59.30
C10	42.65	120.00	N38°40'38"W	42.43
C11	36.23	49.00	N75°07'35"W	35.41
C12	95.38	13130.18	N61°42'48"E	95.38
C13	35.55	40.00	S17°19'37"W	34.39
C15	61.54	40.00	S72°34'16"E	55.65
C16	104.29	791.00	S67°07'50"W	104.21
C17	111.76	791.00	S74°57'18"W	111.67
C18	58.78	40.00	N36°54'38"E	53.63
C19	148.86	684.00	N10°13'13"E	148.57
C20	193.83	501.00	S3°47'43"E	192.62
C21	304.95	389.00	N7°34'47"E	297.20
C23	187.02	739.00	N88°27'17"E	186.52
C24	65.01	149.00	N2°44'02"W	64.50
C25	141.18	170.00	N39°01'32"W	137.16
C26	61.45	60.00	S87°50'35"W	58.80
C27	25.10	161.00	N62°58'09"E	25.07
C28	36.25	120.00	S58°46'57"W	36.11
C29	33.81	40.00	S25°55'09"W	32.81
C30	113.68	1089.41	S15°17'39"E	113.63

LINE TABLE		
Line #	Distance	Bearing
L1	84.76	N27°16'12"E
L2	34.50	N11°08'09"E
L3	67.64	N67°11'13"E
L4	110.89	N28°29'40"W
L5	22.02	N61°30'20"E
L6	118.72	S28°29'40"E
L7	137.15	N63°21'12"E
L8	55.87	N63°21'12"E
L9	101.77	S07°17'17"W
L10	177.41	S14°52'43"E
L11	383.80	S30°02'17"W
L12	131.01	S81°12'18"W
L13	83.25	N84°17'45"W
L14	123.20	N15°14'03"W
L15	81.77	N62°49'03"W

DATE: 7-1-2015		PROJECT NAME: FORMER GALAXY CLEANERS			
LOCATION: 2001 KILDAIRE FARM ROAD, CARY, NC					
MONITORING WELL ID	NORTHING (FEET)	EASTING (FEET)	ELEVATION (FEET)	DESIGNATION	
MW-1	723249.87	2066110.81	408.11	T.O.W.	
TC MW-1	723249.87	2066110.81	407.96	1" P.V.C.	
MW-2	723246.17	2066154.70	407.88	T.O.W.	
TC MW-2	723246.17	2066154.70	407.63	1" P.V.C.	
MW-3	723300.28	2066200.70	407.67	T.O.W.	
NOT FOUND					
MW-4	723174.43	2066136.36	405.63	T.O.W.	
TC MW-4	723174.43	2066136.36	405.32	2" P.V.C.	
MW-5	723233.48	2066231.55	407.15	T.O.W.	
TC MW-5	723233.48	2066231.55	406.85	2" P.V.C.	
MW-6	723220.54	2066078.66	406.13	T.O.W.	
NOT FOUND					
MW-7	723300.40	2066246.49	408.13	T.O.W.	
TC MW-7	723300.40	2066246.49	407.86	2" P.V.C.	
MW-8	723297.16	2066193.80	408.49	T.O.W.	
MW-8S	723297.16	2066193.80	408.24	1" P.V.C.	
MW-8D	723297.16	2066193.80	408.20	1" P.V.C.	

SURVEYORS CERTIFICATE [G.S. 47-30]

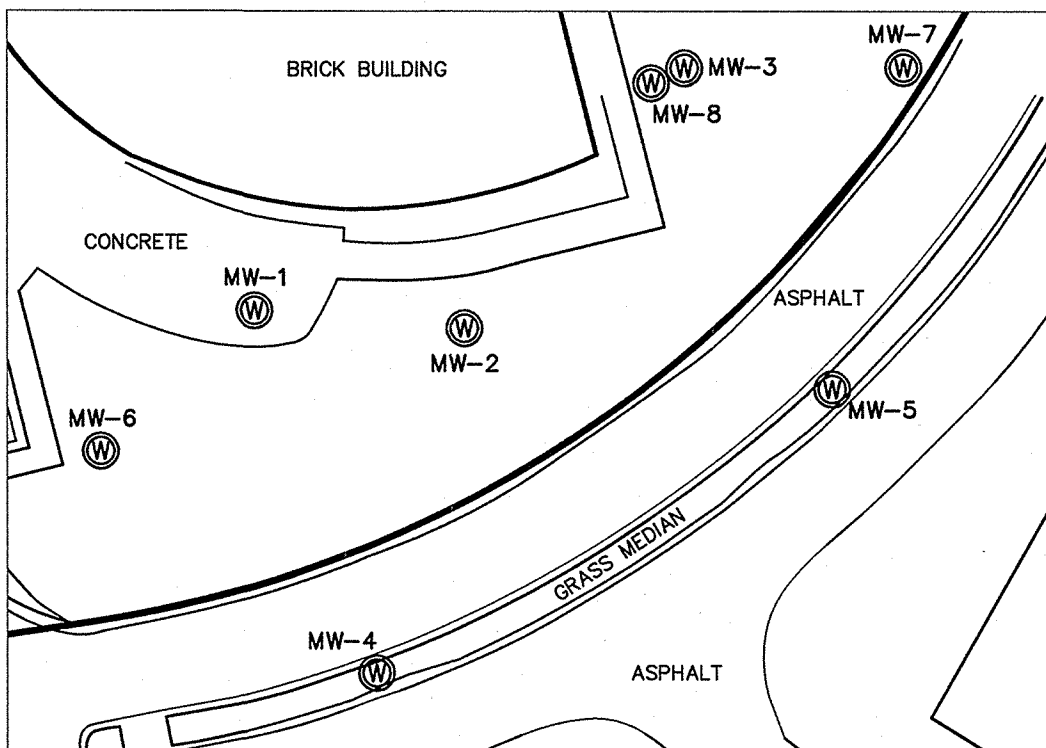
I, STEPHEN S. DYER, CERTIFY THAT THIS MAP WAS DRAWN UNDER MY SUPERVISION FROM AN ACTUAL SURVEY MADE UNDER MY SUPERVISION; THAT THE BOUNDARIES NOT SURVEYED ARE CLEARLY INDICATED AS DASHED LINES, DRAWN FROM INFORMATION REFERENCED ON THE FACE OF THIS PLAT; THAT THE RATIO OF PRECISION AS CALCULATED EXCEEDS 1:10,000; THAT THIS SURVEY IS OF AN EXISTING PARCEL OR PARCELS OF LAND AND DOES NOT CREATE A NEW STREET OR CHANGE AN EXISTING STREET; THAT THIS PLAT WAS PREPARED IN ACCORDANCE WITH G.S. 47-30(f)(1) AS AMENDED; WITNESS MY ORIGINAL SIGNATURE REGISTRATION NUMBER AND SEAL THIS _____ DAY OF _____, 2015.

FOR REVIEW ONLY

STEPHEN S. DYER, PLS L-3509
N.C. FIRM LICENSE #C-1069

GRAPHIC SCALE			
200	0	100	200
1 INCH = 200 FEET			
NO.	BY	DATE	REVISION

INSET - 1"=40'

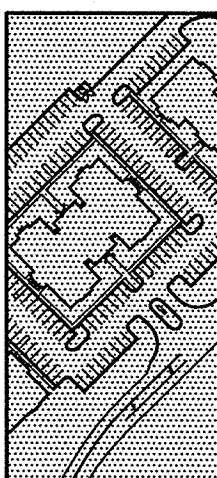


SURVEY NOTES:

- 1) THE SUBJECT PROPERTY FOR THIS SURVEY IS IDENTIFIED BY WAKE COUNTY PARCEL IDENTIFICATION NUMBER (PIN) #0762630729. THE PURPOSE OF THIS PLAT IS TO DISPLAY (1) THE LOCATIONS OF MONITORING WELLS LOCATED ON THE SUBJECT PROPERTIES WITH RESPECT TO SURVEYED BENCHMARKS AND (2) THE TYPE, LOCATION AND QUANTITY OF REGULATED SUBSTANCES AND CONTAMINANTS KNOWN TO EXIST ON THIS NORTH CAROLINA DEPARTMENT OF ENVIRONMENT AND NATURAL RESOURCES (NCDENR) DRY-CLEANING SOLVENT CLEANUP ACT (DSCA) PROGRAM SITE.
- 2) THE AREAS AND TYPE OF CONTAMINATION DEPICTED HEREON ARE APPROXIMATIONS DERIVED FROM THE BEST AVAILABLE INFORMATION AT THE TIME OF FILING. THIS INFORMATION WAS SUPPLIED TO THE ISAACS GROUP BY HART & HICKMAN, PC OF NORTH CAROLINA.
- 3) ALL BEARINGS, DISTANCES AND COORDINATES SHOWN HEREON ARE BASED UPON THE NORTH CAROLINA STATE PLANE COORDINATE SYSTEM, NAD 83 (NSRS 2007), WITH NAVD88 (GEOID 12A) ELEVATIONS, PER A GPS SURVEY PERFORMED BY THE ISAACS GROUP, COMPLETED JUNE 17, 2015. THE N.C. STATE PLANE COORDINATES SHOWN FOR CONTROL POINT #1003 & #1006 WERE ESTABLISHED UTILIZING A TRIMBLE R8 GLOBAL POSITIONING SYSTEMS (GPS) UNIT IN CONJUNCTION WITH THE NORTH CAROLINA GEODETIC SURVEYS VIRTUAL REFERENCE SYSTEM (VRS), WHICH IS BASED UPON THE CONTINUALLY OPERATING REFERENCE STATIONS (CORS). ALL MEASUREMENTS SHOWN HEREON ARE REPORTED IN U.S. SURVEY FEET (UNLESS NOTED OTHERWISE).
- 4) THIS PLAT DOES NOT REPRESENT A BOUNDARY SURVEY OF THE SUBJECT PROPERTIES. THE BOUNDARY LINES OF THE SUBJECT PROPERTIES WERE PRODUCED FROM THE LEGAL DESCRIPTION FOUND IN DEED BOOK 15872, PAGE 2452; THE SUBJECT BOUNDARY HAS BEEN HELD ON A FOUND PK NAIL ON THE SOUTHWESTERN PROPERTY LINE (NEW WARELY DRIVE), AND ROTATED TO AN ANOTHER FOUND PK NAIL ALONG NEW WARELY DRIVE. SUBJECT PARCEL LINES ARE SHOWN BASED ON THAT LEGAL DESCRIPTION.
- 5) SOME INFORMATION SUCH AS BUILDING FOOTPRINTS, MOST PROPERTY LINES, AND EDGE OF PAVEMENTS/CURB LINES HAVE BEEN TAKEN FROM WAKE COUNTY GIS DATABASE INFORMATION, AND THIS INFORMATION IS SHOWN FOR REFERENCE PURPOSES ONLY. NO ACCURACY OR POSITIONAL TOLERANCE IS GUARANTEED BY THIS SURVEY AS TO HOW THE SURVEYED FEATURES RELATE TO THE GIS INFORMATION SHOWN.
- 6) PROPERTY OWNER INFORMATION WAS OBTAINED ONLINE FROM WAKE COUNTY GIS RECORDS.
- 7) THE PROPERTY SHOWN HEREON IS SUBJECT TO ALL RIGHTS OF WAY, EASEMENTS COVENANTS AND RESTRICTIONS, APPURTENANCES OF RECORD, HOWEVER RECORDED AND/OR IMPLIED.
- 8) REFERENCE COORDINATE SYSTEM FOR VERTICAL DATUM: NAVD88.
- 9) THE FOLLOWING WAS USED TO PERFORM THE GPS SURVEY INFORMATION SHOWN:
 - (1) CLASS "A" SURVEY
 - (2) POSITIONAL ACCURACY IS 0.05' WITHIN A 95 PERCENT CONFIDENCE LEVEL:
 - (3) REAL-TIME KINEMATIC GPS FIELD PROCEDURE;
 - (4) SURVEY PERFORMED JUNE 17, 2015,
 - (5) VERTICAL DATUM BASED ON NAVD88;
 - (6) TIED TO NC STATE PLAN COORDINATES AS SHOWN;
 - (7) GEOD "12A" MODEL
 - (8) COMBINED GROUND SCALE FACTOR: 0.999954337855;
 - (9) UNITS ARE IN U.S. FEET.
 - (10) WELL LOCATIONS MW-3 AND MW-6 NOT SURVEYED BY THE ISAACS GROUP.

LEGEND:

TOC	TOP OF CASING	R/W	RIGHT OF WAY
TOW	TOP OF WELL MANHOLE	N.T.S.	NOT TO SCALE
	CALCULATED PROPERTY CORNER	CSF	COMBINED SCALE FACTOR
	DATUM CONTROL POINT	E/P	EDGE OF PAVEMENT
N/F	NOW OR FORMERLY		MONITORING WELL(MW)
---	SUBJECT PARCEL LINES	N	NORTHING
---	WITH FOUND MONUMENTATION	E	EASTING
---	SUBJECT PARCEL LINES	(T)	TOTAL
---	ADJOINER PARCEL LINES		
---	RIGHT OF WAY LINE		



SURVEY PLAT - EXHIBIT "A"
TO THE NOTICE OF DRY-CLEANING SOLVENT REMEDIATION
NWNP LP, LIMITED PARTNERSHIP
PIN #0762630729
FORMER GALAXY CLEANERS-DSCA DC920029
#2001 KILDAIRE FARM ROAD, SWIFT CREEK TWSP,
TOWN OF CARY, WAKE COUNTY, N.C.

File #	15137-SOURCE	Date:	10/9/15	Project P.L.S.:	SSD
Surveyed By:	RV	Drawn By:	DFC/DTC	Scale:	1"=200'

8720 RED OAK BLVD. SUITE 420
CHARLOTTE, N.C. 28217
PHONE (704) 527-3440 FAX (704) 527-8335

EXHIBIT B
PROPERTY LEGAL DESCRIPTION

BEGINNING at the point of intersection of the eastern right of way of Kildaire Farm Road (SR 1300) and the southern boundary line of Tract 11 as recorded in Map Book 1987, Page 1834 of the Wake County Registry, Wake County, North Carolina, said point also being positioned on the North Carolina Grid Coordinate System (NAD 27) at Y = 722,431.49 and X = 2,065,252.86; thence leaving said right of way and running with the southern and eastern boundary lines of Tracts 11, 10, 9 and 8 (all as recorded in Map Book 1987, Page 1834) the following courses and distances: first with a curve to the left having a radius of 40.00' and an arc length of 52.29' to a point; thence with a curve to the left having a radius of 109.00' and arc length of 86.62' to a point; thence N 27-18-12 E 84.76' to a point; thence with a curve to the left having a radius of 469.00' and arc length of 132.33' to a point; thence N 11-08-09 E 34.50' to a point; thence with a curve to the right having a radius of 714.00' and total arc length of 297.00' to a point; thence with a curve to the right having a radius of 474.99' and total arc length of 267.36' to a point; thence N 67-13-12 E 67.64' to a point; thence with a curve to the left having a radius of 40.00' and arc length of 66.80' to a point; thence N 28-27-40 W 110.89' to a point; thence with a curve to the left having a radius of 120.00' and arc length of 42.65' to a point and last with a curve to the left having a radius of 40.00' and arc length of 36.68' to a point on the southern right of way of Tryon Road (SR1009); thence with said Tryon Road right of way N 61-32-19 E 22.02' to a point; thence with a curve to the right having a radius of 13,130.18' and arc length of 95.39' to a point, the northwest corner of Tract 7 recorded in Map Book 1987, Page 1834; thence leaving said right of way and running with the western and southern boundary lines of Tracts 7, 6 and 5 (all as recorded in Map Book 1987, Page 1834) the following courses and distances: first a curve to the left having a radius of 40.00' and arc length of 36.55' to a point; thence with a curve to the left having a radius of 120.00' and arc length of 42.65' to a point; thence S 28-27-40 E 118.72' to a point; thence with a curve to the left having a radius of 40.0' and an arc length of 61.54' to a point; thence N 63-23-12 E 193.02' to a point; thence with a curve to the right having a radius of 791.00' and total arc length of 216.04' to a point; and last with a curve to the left having a radius of 40.00' and arc length of 56.77' to a point; thence and leaving the southern boundary line of Tract 5 (as recorded in Map Book 1987, Page 1834) with a curve to the right having a radius of 684.00' and arc length of 148.86' to a point; thence S 07-19-17 W 101.77' to a point; thence with a curve to the left having a radius of 501.00' and arc length of 193.82' to a point; thence S 14-50-43 E 177.41' to a point; thence with a curve to the right having a radius of 389.00' and arc length of 304.95' to a point; thence S 30-04-17 W 383.80' to a point; thence with a curve to the right having a radius of 249.00' and arc length of 222.36' to a point; thence S 81-14-17 W 131.02' to a point; thence with a curve to the right having a radius of 739.00' and arc length of 187.02' to a point; thence N 84-15-45 W 83.25' to a point on the southeast boundary line of Tract 13 as recorded in Map Book 1987, Page 1834; thence and running with the eastern and northern boundary lines of Tract 13 and 12 (all as recorded in Map Book 1987, Page 1834)) the following courses and distances: first with a curve to the left having a radius of 100.30' and arc length of 12.91' to a point; thence with a curve to the left having a radius of 149.00' and arc length of 65.01' to a point; thence N 15-12-03 W 123.20' to a point; thence with a curve to the left having a radius of 170.00' and arc length of

141.18' to a point; thence N 62-47-03 W 81.77' to a point; thence with a curve to the left having a radius of 60.00' and arc length of 61.45' to a point; thence with a curve to the right having a radius of 161.00' and arc length of 25.10' to a point; thence with a curve to the left having a radius of 120.00' and arc length of 36.24' to a point; and last with a curve to the left having a radius of 40.00' and arc length of 32.80' to a point on the eastern right of way of Kildaire Farm Road (SR 1300); thence and with said right of way with a curve to the right having a radius of 1089.42' and arc length of 113.68' to the POINT OF BEGINNING containing 22.5376 acres, more or less, and being all of Tract 3 as recorded in Map Book 1987, Page 1834, Wake County Registry, Wake County, North Carolina.

Appendix D
Off-Source Property
Notice of Dry-Cleaning Solvent Remediation

NOTICE OF DRY-CLEANING SOLVENT REMEDIATION

Property Owner: Oaks Development, LLC

Recorded in Book _____, Page _____

Associated plat recorded in Plat Book _____, Page _____

This documentary component of a Notice of Dry-Cleaning Solvent Remediation (hereinafter "Notice") is hereby recorded on this ____ day of _____, 20____. The survey plat component of the Notice is being recorded concurrently with this documentary component. The real property (hereinafter "Property") which is the subject of this Notice is located at 530 New Waverly Place, Cary, Wake County, North Carolina, Parcel Identification Number (PIN) 0762635240.

The Property is contaminated with dry-cleaning solvent, as defined at North Carolina General Statutes (hereinafter "N.C.G.S."), Section (hereinafter "§") 143-215.104B(b)(9), and other contaminants and is one of two parcels that make up the dry-cleaning solvent contamination site (hereinafter "Contamination Site"). This Notice has been approved by the North Carolina Department of Environmental Quality, or its successor in function (hereinafter "DEQ") under the authority of the Dry-Cleaning Solvent Cleanup Act of 1997, as amended, N.C.G.S. § 143-215.104A *et seq.* (hereinafter "DSCA"), and is required to be filed in the Register of Deeds' Office in the county or counties in which the land is located, pursuant to NCGS § 143-215.104I. A Notice will be recorded separately in each chain of title of the Contamination Site.

Groundwater under the Property is contaminated with dry-cleaning solvents associated with dry-cleaning operations at the former Galaxy Cleaners (DSCA Site DC920029) located at 101-B New Waverly Place, Cary, in the Waverly Place Shopping Center. **A risk assessment of the contaminated property concluded that the contamination poses no unacceptable risk as long as groundwater on the property is not used as a source of water for any water supply wells.**

Pursuant to N.C.G.S. § 143-215.104I, this Notice is being filed in order to reduce or eliminate the danger to public health or the environment posed by the Property. Attached hereto as **Exhibit A** is a reduction, to 8 1/2" x 11", of the survey plat component of the Notice required by N.C.G.S. § 143-215.104M. The survey plat has been prepared and certified by a professional

land surveyor and meets the requirements of G.S. 47-30, and contains the following information required by N.C.G.S. § 143-215.104M:

- (1) A description of the location and dimensions of the areas of potential environmental concern with respect to permanently surveyed benchmarks; and
- (2) The type, location and quantity of regulated dry-cleaning solvent contamination and other contaminants known to exist on the Property.

Attached hereto as **Exhibit B** is a legal description of the Property that would be sufficient as a description in an instrument of conveyance.

USE OF GROUNDWATER PROHIBITED BY STATE AND LOCAL REGULATIONS

Groundwater on this property contains contaminants that exceed unrestricted use standards. Pursuant to 15A North Carolina Administrative Code 02C .0107(b)(1), “(t)he source of water for any water supply well shall not be from a water bearing zone or aquifer that is contaminated.” Therefore, state law prohibits construction of a water supply well on this property unless it can be demonstrated that the water pumped from the well is not contaminated. Further, pursuant to North Carolina General Statute 87-88(c) and 15A North Carolina Administrative Code 02C .0112(a), no well may be constructed or maintained in a manner whereby it could be a source or channel of contamination of the groundwater supply or any aquifer.

FUTURE SALES, LEASES, CONVEYANCES AND TRANSFERS

When any portion of the Property is sold, leased, conveyed or transferred, pursuant to NCGS § 143-215.104M the deed or other instrument of transfer shall contain in the description section, in no smaller type than that used in the body of the deed or instrument, a statement that the Property has been contaminated with dry-cleaning solvent and, if appropriate, cleaned up under the DSCA.

CANCELLATION OF THE NOTICE

The Notice may, at the request of the Property Owner, be canceled by DEQ after the risk to public health and the environment associated with the dry-cleaning solvent contamination and any other contaminants included in the DSCA Remediation Agreement have been eliminated as a result of remediation of the Property to unrestricted use standards.

**APPROVAL AND CERTIFICATION OF NORTH CAROLINA DEPARTMENT OF
ENVIRONMENTAL QUALITY**

The foregoing Notice of Dry-Cleaning Solvent Remediation is hereby approved and certified.

North Carolina Department of Environmental Quality

By:

Jim Bateson, LG
Chief, Superfund Section
Division of Waste Management

Date

STATE OF NORTH CAROLINA
COUNTY OF WAKE

I, _____, a Notary Public of Wake County and State of
North Carolina do hereby certify that _____ did
personally appeared before me this the ____ day of _____, 20____.

Name typed or printed
Notary Public

My Commission expires: _____
[Stamp/Seal]

CERTIFICATION OF REGISTER OF DEEDS

The foregoing documentary component of the Notice of Dry-Cleaning Solvent Remediation, and the associated plat, are certified to be duly recorded at the date and time, and in the Books and Pages, shown on the first page hereof.

Register of Deeds for Wake County

By: _____

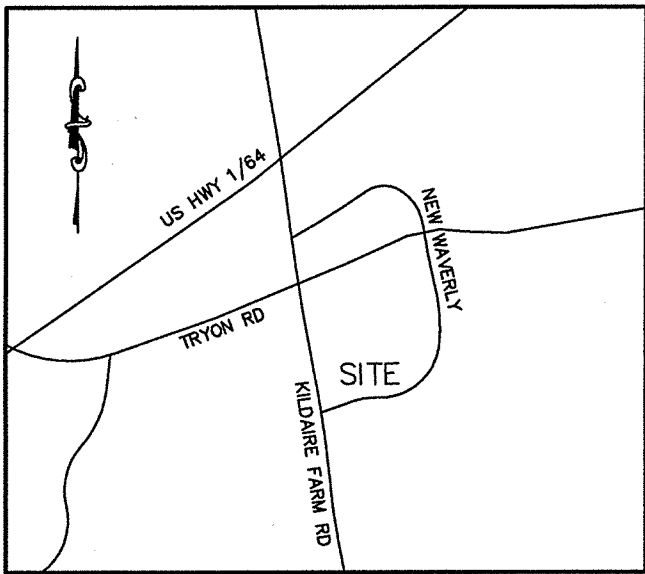
Name typed or printed: _____

Deputy/Assistant Register of Deeds

_____ Date

EXHIBIT A

SURVEY PLAT REDUCTION



VICINITY MAP
N.T.S.

FLOOD CERTIFICATION:

THIS IS TO CERTIFY THAT A PORTION OF THE PROPERTY SHOWN ON THIS PLAT IS NOT LOCATED IN A SPECIAL FLOOD HAZARD AREA AS SHOWN ON MAPS PREPARED BY THE FEDERAL EMERGENCY MANAGEMENT AGENCY, FEDERAL INSURANCE ADMINISTRATION, COMMUNITY NUMBER 372007-6200-J, DATED MAY 2, 2006.

N.C.G.S. MONUMENT
"DOWNS"
NAD 83 COORD.
N=724054.509'
E=2509743.195'
ELEV=377.51'

VRS SURVEY TIE:

ALL BEARINGS, DISTANCES AND COORDINATES SHOWN HEREON ARE LOCALIZED (GROUND) NAD 83 (2011 HARN ADJUSTMENT) HORIZONTAL INFORMATION (UNLESS NOTED OTHERWISE), BASED UPON THE NORTH CAROLINA STATE PLANE COORDINATE SYSTEM, WITH NAVD 88 ELEVATIONS. THE N.C. STATE PLANE COORDINATES FOR CONTROL POINTS #1003, & #1006, SHOWN HEREON WERE ESTABLISHED UTILIZING GLOBAL POSITIONING SYSTEMS (GPS) IN CONJUNCTION WITH THE NORTH CAROLINA GEODETIC SURVEY'S VIRTUAL REFERENCE SYSTEM (VRS), WHICH IS BASED UPON THE CONTINUALLY OPERATING REFERENCE STATIONS (CORS), THE VRS SURVEY TIE WAS PERFORMED ON SEPTEMBER 9, 2014. ALL MEASUREMENTS SHOWN HEREON ARE REPORTED IN U.S. SURVEY FEET UNLESS NOTED OTHERWISE.

GROUNDWATER IN WELLS MW-1, MW-3, MW-4, MW-8S, AND MW-8I EXCEEDED THE APPLICABLE 2L WATER QUALITY STANDARDS (15A NCAC 2L.0200) FOR ONE OR MORE OF THE FOLLOWING CONTAMINANTS: TETRACHLOROETHYLENE AND BROMODICHLOROMETHANE.

"N.C.G.S. 143-215.104M(d) REQUIRES THAT WHEN PROPERTY FOR WHICH A NOTICE OF DRY-CLEANING SOLVENT REMEDIATION HAS BEEN FILED IS SOLD, LEASED, CONVEYED OR TRANSFERRED, THE DEED OR OTHER INSTRUMENT OF TRANSFER SHALL CONTAIN IN THE DESCRIPTION SECTION, IN NO SMALLER TYPE THAN THAT USED IN THE BODY OF THE DEED OR INSTRUMENT, A STATEMENT THAT THE PROPERTY HAS BEEN CONTAMINATED WITH DRY-CLEANING SOLVENT AND, IF APPROPRIATE, CLEANED UP UNDER THIS PART. USE THE FOLLOWING STATEMENT TO SATISFY N.C.G.S. 143-215.104M(d):

THIS PROPERTY HAS BEEN CONTAMINATED WITH DRY-CLEANING SOLVENT. A NOTICE OF DRY-CLEANING SOLVENT REMEDIATION IS RECORDED IN THE WILSON COUNTY REGISTER OF DEEDS' OFFICE AT: BOOK _____, PAGE _____.

QUESTIONS CONCERNING THIS MATTER MAY BE DIRECTED TO THE NORTH CAROLINA DIVISION OF WASTE MANAGEMENT, SUPERFUND SECTION, DRY-CLEANING SOLVENT CLEANUP ACT (DSCA) PROGRAM, OR ITS SUCCESSOR IN FUNCTION. 1646 MAIL SERVICE CENTER, RALEIGH, NC 27699-1646.

APPROVED FOR THE PURPOSES OF N.C.G.S. 143-215.104M

JIM BATESON, LG
CHIEF, SUPERFUND SECTION
DIVISION OF WASTE MANAGEMENT
NORTH CAROLINA
WAKE COUNTY

I, _____, A NOTARY PUBLIC OF _____ COUNTY AND STATE OF _____ DO HEREBY CERTIFY THAT _____ DID PERSONALLY APPEAR &

SIGN BEFORE ME THIS THE _____ DAY OF _____, 20____.

NOTARY PUBLIC (SIGNATURE) _____

MY COMMISSION EXPIRES _____

THE DOCUMENTARY COMPONENT OF THIS NOTICE OF DRY-CLEANING SOLVENT REMEDIATION, LIMITING THE USES OF THIS PROPERTY IS RECORDED AT:

DEED BOOK _____ PAGE _____
AND _____

Curve Table				
Curve #	Length	Radius	Bearing	Chord
C1	42.57	27.49	S74°21'21"W	38.44
C2	17.84	12.36	N19°59'19"W	16.33
C3	18.85	12.00	S74°55'55"W	16.97
C4	28.44	68.50	N48°10'26"W	28.24
C5	26.43	39.98	S72°58'42"E	25.95
C6	42.63	127.54	N77°54'55"E	42.43
C7	49.98	131.26	N57°26'51"E	49.68
C8	52.56	99.61	N32°06'58"E	51.95
C9	187.02	739.00	N88°27'17"E	186.52
C10	222.44	249.10	N55°36'30"E	215.12

Line Table		
Line #	Distance	Bearing
L1	49.25	N59°59'59"W
L2	20.18	N68°41'01"W
L3	39.80	N60°04'05"W
L4	29.00	S29°55'55"W
L5	33.70	N60°04'05"W
L6	24.09	S22°32'44"W
L7	8.00	N65°38'18"W
L8	24.09	N22°32'44"E
L9	299.32	N60°16'41"W
L10	83.00	N10°18'54"E
L11	313.10	N18°36'08"E
L12	110.20	N57°22'11"E
L13	145.22	N10°39'30"W
L14	151.77	N44°13'47"E
L15	212.24	S59°44'59"E
L16	116.81	S78°44'51"E
L17	164.44	S18°24'38"W
L18	294.31	S76°48'17"E
L19	163.58	S84°57'18"E
L20	387.23	N70°25'31"E
L21	153.32	S22°16'06"E
L22	20.74	S68°44'53"W
L23	29.53	S47°10'49"W
L24	83.25	N84°17'45"W
L25	131.01	S81°12'18"W
L26	330.21	S30°02'17"W

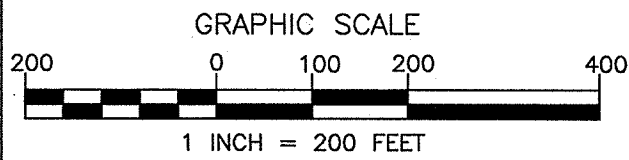
DATE: 7-1-2015		PROJECT NAME: FORMER GALAXY CLEANERS			
LOCATION: 2001 KILDAIRE FARM ROAD, CARY, NC					
MONITORING WELL ID	NORTHING (FEET)	EASTING (FEET)	ELEVATION (FEET)	DESIGNATION	
MW-1	723249.87	2066110.81	408.11	T.O.W.	
TC MW-1	723249.87	2066110.81	407.96	1" P.V.C.	
MW-2	723246.17	2066154.70	407.88	T.O.W.	
TC MW-2	723246.17	2066154.70	407.63	1" P.V.C.	
MW-3	723300.28	2066200.70	407.67	T.O.W.	
NOT FOUND					
MW-4	723174.43	2066136.36	405.63	T.O.W.	
TC MW-4	723174.43	2066136.36	405.32	2" P.V.C.	
MW-5	723233.48	2066231.55	407.15	T.O.W.	
TC MW-5	723233.48	2066231.55	406.85	2" P.V.C.	
MW-6	723220.54	2066078.66	406.13	T.O.W.	
NOT FOUND					
MW-7	723300.40	2066246.49	408.13	T.O.W.	
TC MW-7	723300.40	2066246.49	407.86	2" P.V.C.	
MW-8	723297.16	2066193.80	408.49	T.O.W.	
MW-8S	723297.16	2066193.80	408.24	1" P.V.C.	
MW-8D	723297.16	2066193.80	408.20	1" P.V.C.	

SURVEYORS CERTIFICATE [G.S. 47-30]

I, STEPHEN S. DYER, CERTIFY THAT THIS MAP WAS DRAWN UNDER MY SUPERVISION FROM AN ACTUAL SURVEY MADE UNDER MY SUPERVISION; THAT THE BOUNDARIES NOT SURVEYED ARE CLEARLY INDICATED AS DASHED LINES, DRAWN FROM INFORMATION REFERENCED ON THE FACE OF THIS PLAT; THAT THE RATIO OF PRECISION AS CALCULATED EXCEEDS 1:10,000; THAT THIS SURVEY IS OF AN EXISTING PARCEL OR PARCELS OF LAND AND DOES NOT CREATE A NEW STREET OR CHANGE AN EXISTING STREET; THAT THIS PLAT WAS PREPARED BY THIS SURVEY AS TO HOW THE SURVEYED FEATURES RELATE TO THE GIS INFORMATION SHOWN.
G.S. 47-30(f)(11) AS AMENDED; WITNESS MY ORIGINAL SIGNATURE REGISTRATION NUMBER AND SEAL THIS _____ DAY OF _____, 2015.

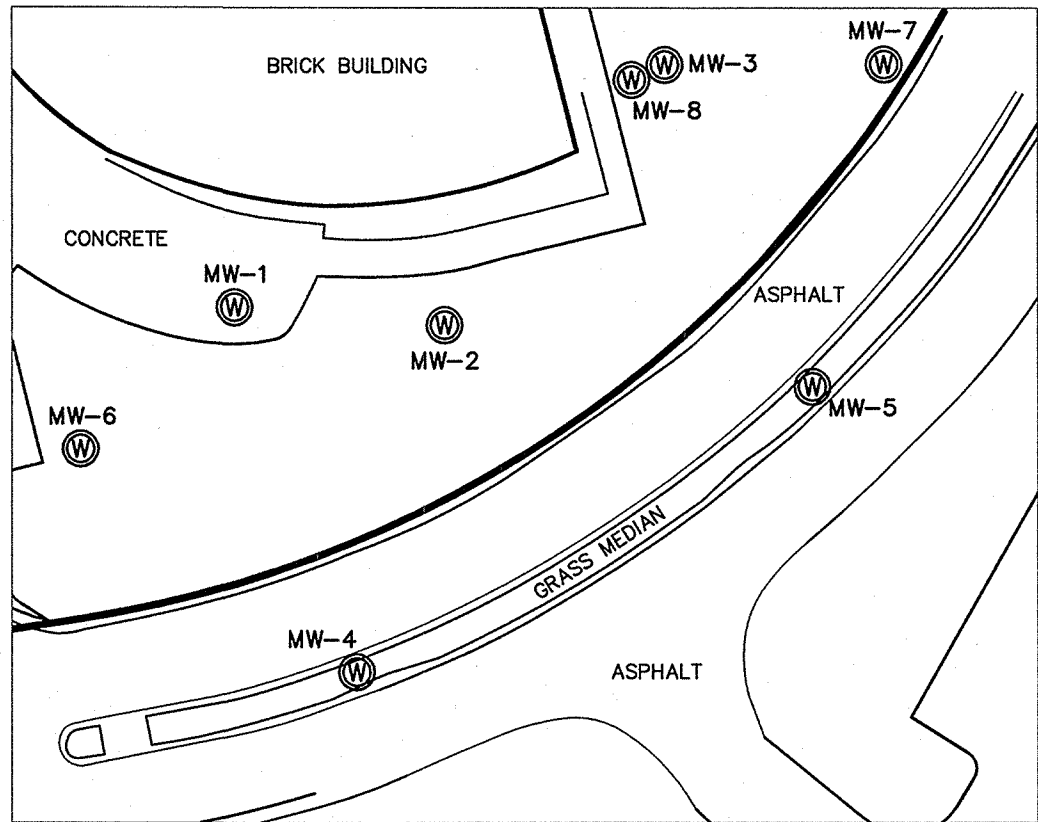
FOR REVIEW ONLY

STEPHEN S. DYER, PLS L-3509
N.C. FIRM LICENSE #C-1069



NO.	BY	DATE	REVISION

INSET - 1"=40'



SURVEY NOTES:

- 1) THE SUBJECT PROPERTY FOR THIS SURVEY IS IDENTIFIED BY WAKE COUNTY PARCEL IDENTIFICATION NUMBER (PIN) #0762635240. THE PURPOSE OF THIS PLAT IS TO DISPLAY (1) THE LOCATIONS OF MONITORING WELLS LOCATED ON THE SUBJECT PROPERTIES WITH RESPECT TO SURVEYED BENCHMARKS AND (2) THE TYPE, LOCATION AND QUANTITY OF REGULATED SUBSTANCES AND CONTAMINANTS KNOWN TO EXIST ON THIS NORTH CAROLINA DEPARTMENT OF ENVIRONMENT AND NATURAL RESOURCES (NCDENR) DRY-CLEANING SOLVENT CLEANUP ACT (DSCA) PROGRAM SITE.
- 2) THE AREAS AND TYPE OF CONTAMINATION DEPICTED HEREON ARE APPROXIMATIONS DERIVED FROM THE BEST AVAILABLE INFORMATION AT THE TIME OF FILING. THIS INFORMATION WAS SUPPLIED TO THE ISAACS GROUP BY HART & HICKMAN, PC OF NORTH CAROLINA.
- 3) ALL BEARINGS, DISTANCES AND COORDINATES SHOWN HEREON ARE BASED UPON THE NORTH CAROLINA STATE PLANE COORDINATE SYSTEM, NAD 83 (NSRS 2007), WITH NAVD88 (GEOID 12A) ELEVATIONS, PER A GPS SURVEY PERFORMED BY THE ISAACS GROUP, COMPLETED JUNE 17, 2015. THE N.C. STATE PLANE COORDINATES SHOWN FOR CONTROL POINT #1003 & #1006 WERE ESTABLISHED UTILIZING A TRIMBLE R8 GLOBAL POSITIONING SYSTEMS (GPS) UNIT IN CONJUNCTION WITH THE NORTH CAROLINA GEODETIC SURVEYS VIRTUAL REFERENCE SYSTEM (VRS), WHICH IS BASED UPON THE CONTINUALLY OPERATING REFERENCE STATIONS (CORS). ALL MEASUREMENTS SHOWN HEREON ARE REPORTED IN U.S. SURVEY FEET (UNLESS NOTED OTHERWISE).
- 4) THIS PLAT DOES NOT REPRESENT A BOUNDARY SURVEY OF THE SUBJECT PROPERTIES. THE BOUNDARY LINES OF THE SUBJECT PROPERTIES WERE PRODUCED FROM THE LEGAL DESCRIPTION FOUND IN DEED BOOK 15872, PAGE 2452; THE SUBJECT BOUNDARY HAS BEEN HELD ON A FOUND PK NAIL ON THE NORTHWESTERN PROPERTY LINE (NEW WAVERLY DRIVE), AND ROTATED TO ANOTHER FOUND PK NAIL ALONG NEW WAVERLY DRIVE. SUBJECT PARCEL LINES ARE SHOWN BASED ON THAT LEGAL DESCRIPTION.
- 5) SOME INFORMATION SUCH AS BUILDING FOOTPRINTS, MOST PROPERTY LINES, AND EDGE OF PAVEMENTS/CURB LINES HAVE BEEN TAKEN FROM WAKE COUNTY GIS DATABASE INFORMATION, AND THIS INFORMATION IS SHOWN FOR REFERENCE PURPOSES ONLY. NO ACCURACY OR POSITIONAL TOLERANCE IS GUARANTEED BY THIS SURVEY AS TO HOW THE SURVEYED FEATURES RELATE TO THE GIS INFORMATION SHOWN.
- 6) PROPERTY OWNER INFORMATION WAS OBTAINED ONLINE FROM WAKE COUNTY GIS RECORDS.
- 7) THE PROPERTY SHOWN HEREON IS SUBJECT TO ALL RIGHTS OF WAY, EASEMENTS COVENANTS AND RESTRICTIONS, APPURTENANCES OF RECORD, HOWEVER RECORDED AND/OR IMPLIED.
- 8) REFERENCE COORDINATE SYSTEM FOR VERTICAL DATUM: NAVD88.
- 9) THE FOLLOWING WAS USED TO PERFORM THE GPS SURVEY INFORMATION SHOWN:
 - (1) CLASS "A" SURVEY
 - (2) POSITIONAL ACCURACY IS 0.05' WITHIN A 95 PERCENT CONFIDENCE LEVEL;
 - (3) REAL-TIME KINEMATIC GPS FIELD PROCEDURE;
 - (4) SURVEY PERFORMED JUNE 17, 2015,
 - (5) VERTICAL DATUM BASED ON NAVD88;
 - (6) TIED TO NC STATE PLANE COORDINATES AS SHOWN;
 - (7) GEOID "12A" MODEL;
 - (8) COMBINED GROUND SCALE FACTOR: 0.99995437855;
 - (9) UNITS ARE IN U.S. FEET.
 - (10) WELL LOCATIONS MW-3 AND MW-6 NOT SURVEYED BY THE ISAACS GROUP.

LEGEND:

TOC	TOP OF CASING	R/W	RIGHT OF WAY
TOW	TOP OF WELL MANHOLE	N.T.S.	NOT TO SCALE
	CALCULATED PROPERTY CORNER	CSF	COMBINED SCALE FACTOR
	DATUM CONTROL POINT	E/P	EDGE OF PAVEMENT
	NOW OR FORMERLY		MONITORING WELL (MW)
	SUBJECT PARCEL LINES WITH FOUND MONUMENTATION	N	NORTHING
	SUBJECT PARCEL LINES PLOTTED FROM DEEDS	E	EASTING
	ADJOINER PARCEL LINES	(T)	TOTAL
	RIGHT OF WAY LINE		

SURVEY PLAT - EXHIBIT "A"
TO THE NOTICE OF DRY-CLEANING SOLVENT REMEDIATION
OAKS DEVELOPMENT, LLC
PIN #0762635240, #530 NEW WAVERLY PLACE,
TOWN OF CARY, WAKE COUNTY, NORTH CAROLINA 27518
CONTAMINATION SOURCE:
FORMER GALAXY CLEANERS-DSCA DC920029
#2001 KILDAIRE FARM RD, TOWN OF CARY, WAKE COUNTY, N.C.

File #	15137-OFFSITE	Date	10/9/2015	Project P.L.S.:	SSD
		Surveyed By:	RV	Scale: 1"=200'	
		Drawn By:	DFC/DTC		

8720 RED OAK BLVD. SUITE 420
CHARLOTTE, N.C. 28217
PHONE (704) 527-3440 FAX (704) 527-8335

EXHIBIT B

LEGAL DESCRIPTION FOR PROPERTY

BEING all of that certain lot (the "Lot") containing 11.665 acres as shown on the "Subdivision Map of Waverly Place Office Park" prepared by Chas. H. Sells, Inc. dated December 6, 2004 recorded in Book of Maps 2005, Page 31, Wake County, North Carolina, Register of Deeds.

TOGETHER WITH, a non-exclusive, perpetual easement, over and upon that certain tract of land designated "INGRESS/EGRESS EASEMENT (PRIVATE)" and shown on the "Subdivision Map of Waverly Place Office Park" prepared by Chas. H. Sells, Inc. dated December 6, 2004 recorded in Book of Maps 2005, Page 31, Wake County, North Carolina, Register of Deeds (the "Easement Property") for the purposes of ingress, egress and regress on, over and upon the Easement Property, including all vehicular and pedestrian traffic areas, all curb cuts, roadways, driveways, aisles, walkways and sidewalks now or hereafter located on the Easement Property, for vehicular and pedestrian passage and the general use, comfort and convenience of the owner(s) of the Lot, its (their) successors or assigns, its (their) guests, invitees, tenants, employees, customers, agents, contractors and licensees, and for the purpose of constructing, maintaining and repairing any and all improvements reasonably necessary or convenient for such purposes, said easement rights to run with and benefit the Lot, inuring to the benefit of the owner(s) from time to time thereof, and to run with and bind the Easement Property.

Appendix E
Example of Annual Certification

Annual Certification of Land-Use Restrictions

Site Name: Galaxy Cleaners
Site Address: 101-B New Waverly Place, Cary, Wake County
DSCA ID No: DC920029

ANNUAL CERTIFICIATION of LAND-USE RESTRICTIONS

Pursuant to Condition #3 in the Notice of Dry-Cleaning Solvent Remediation (Notice) signed by NWWP LP and recorded in Deed Book _____ Page _____ on _____ at the Wake County Register of Deeds Office, NWWP LP hereby certifies, as an owner of at least part of the property that is the subject of the Notice, that the Notice remains recorded at the Wake County Register of Deeds office and the land-use restrictions therein are being complied with.

Duly executed this _____ day of _____, 20__.

NWWP LP

By: _____

Name typed or printed:

STATE OF _____
COUNTY OF _____

I, _____, a Notary Public of the county and state aforesaid, certify that _____ personally came before me this day and the foregoing certification was signed by him/her.

WITNESS my hand and official stamp or seal, this _____ day of _____, 20__.

Name typed or printed:

Notary Public

My Commission expires: _____
[Stamp/Seal]

Appendix F
Example Documents Announcing the Public Comment Period



PAT MCCRORY

Governor

DONALD R. VAN DER VAART

Secretary

LINDA CULPEPPER

Director

[DATE]

<property owner>
<mailing address>
<city, state, zip>

Subj: Dry-Cleaning Solvent Contamination
<property address, city>, NC

Dear <property owner>:

The Dry-Cleaning Solvent Clean-up Act (DSCA) Program has completed an assessment of the dry-cleaning solvent contamination associated with the former Galaxy Cleaners at 101-B New Waverly Place, in Cary, North Carolina. The property is currently occupied by Whole Foods Market. A remedial strategy to address the site contamination has been prepared. You are receiving this letter in accordance with the DSCA Program's statutes, which provide the community an opportunity to review and comment on the proposed strategy. Attached is a **Summary of the Notice of Intent to Remediate a Dry-Cleaning Solvent Facility or Abandoned Site** which provides a brief description of the proposed remedy, a web link with more details, and the dates and procedures for commenting on the proposed remedy. We ask that you review these documents. If you do not have access to the internet, we ask that you contact us to request a hard copy.

You are also receiving this letter because your property lies within an area where dry-cleaning solvents have been detected in groundwater. An evaluation of the risks concluded that the contamination poses no unacceptable risks for the current use of your property. However, because groundwater under your property is contaminated, state regulations prohibit the installation of a water supply well on this property. If the proposed remedy is approved, a notice will be recorded in the chain of title indicating that groundwater is contaminated with dry-cleaning solvents and that regulations prohibit installation of a water supply well into a contaminated aquifer.

If you would like to see an example of this notice, please access the website: <http://portal.ncdenr.org/web/wm/DSCA/PublicNotices>, open the Risk Management Plan for the Galaxy Cleaners site, and see Appendix C. If the proposed remedy is approved, you will be sent a letter describing your rights to appeal the decision to file such a notice in the chain of title, and providing you the option of filing the notice yourself.

If you have questions, please contact me at (919) 707-8359 or Delonda Alexander at (919) 707-8365.

Sincerely,

Scott Stupak, Project Manager
DSCA Remediation Unit
Scott.Stupak@ncdenr.gov

Attachments: Summary of the NOI

Cc: DSCA Site # DC920029 File





PAT MCCRORY

Governor

DONALD R. VAN DER VAART

Secretary

LINDA CULPEPPER

Director

[DATE]

<property owner>

<mailing address>

<city, state, zip>

Subj: Dry-Cleaning Solvent Contamination at 101-B New Waverly Place
Cary, NC

Dear <property owner>:

You are receiving this letter because your property at <adjacent property address> is adjacent to an area contaminated with dry-cleaning solvents. The Dry-Cleaning Solvent Clean-up Act (DSCA) Program has completed an assessment of the dry-cleaning solvent contamination associated with the Galaxy Cleaners at 101-B New Waverly Place, in Cary, North Carolina. The property is currently occupied by Whole Foods Market. A remedial strategy to address the site contamination has been prepared, and in accordance with our program's statutes, the community has an opportunity to review and comment on the proposed strategy.

The attached Summary of the Notice of Intent to Remediate a Dry-Cleaning Solvent Facility or Abandoned Site (NOI) provides a brief description of the proposed remedy, a web link to the complete NOI, and the dates and procedures for commenting on the proposed remedy. If you do not have access to the internet, we ask that you contact us to request a hard copy of the complete NOI.

If you have questions, please contact me at (919) 707-8359 or Delonda Alexander at (919) 707-8365.

Sincerely,

Scott Stupak, Project Manager
DSCA Remediation Unit
Scott.Stupak@ncdenr.gov

Attachments: Summary of the NOI

Cc: DSCA Site # DC920029 File





PAT MCCRORY

Governor

DONALD R. VAN DER VAART

Secretary

LINDA CULPEPPER

Director

[DATE]

Mr. Benjamin Shivar, Town of Cary Manager
316 N. Academy Street
Cary, NC 27513

Subj: Remediation of Dry-Cleaning Solvent Contamination
DSCA Site # DC920029
Galaxy Cleaners, 101-B New Waverly Place, Cary

Dear Mr. Shivar:

The Dry-Cleaning Solvent Cleanup Act of 1997 (DSCA), North Carolina General Statutes (N.C.G.S.) Sections 143-215.104A through 143-215.104U, provides for the assessment and remediation of properties that may have been or were contaminated by chlorinated solvents. To satisfy the requirements of N.C.G.S. 143-215.104L, this letter serves as the **Notice of Intent to Remediate a Dry-Cleaning Solvent Facility or Abandoned Site** (NOI) approved by the North Carolina Department of Environmental Quality (DEQ).

The NOI must provide, to the extent known, a legal description of the location of the DSCA Site, a map showing the location of the DSCA Site, a description of the contaminants involved and their concentrations in the media of the DSCA Site, a description of the intended future use of the DSCA Site, any proposed investigation and remediation, and a proposed Notice of Dry-Cleaning Solvent Remediation (NDCSR) prepared in accordance with N.C.G.S. Section 143-215.104M. The required components of the NOI are included in the attached Risk Management Plan, and are available on our website at www.ncdscs.org, under "Public Notices" during the public comment period.

The DSCA Program is providing a copy of the NOI to all local governments having jurisdiction over the DSCA Site. A 30-day public comment period is being held from <date>, until <date>. Written comments may be submitted to DEQ no later than <date>. Written requests for a public meeting may be submitted to DEQ no later than <date>. All such comments and requests should be sent to:

Scott Stupak, DSCA Remediation Unit
Division of Waste Management, NC DEQ
1646 Mail Service Center
Raleigh, North Carolina 27699-1646

A Summary of the NOI is being published in The News & Observer copies are being sent to owners of property within and contiguous with the area of contamination, and a copy of the Summary will be conspicuously posted at the Site during the public comment period.



If you have any questions, please feel free to contact me at (919)707-8359.

Sincerely,

Scott Stupak, Project Manager
DSCA Remediation Unit
scott.stupak@ncdenr.gov

Attachment: Risk Management Plan

cc: DSCA Site # DC920029 File





PAT MCCRORY

Governor

DONALD R. VAN DER VAART

Secretary

LINDA CULPEPPER

Director

[DATE]

Ms. Sue Lynn Ledford
Wake County Division Director, Public Health
P.O Box 550
Raleigh, NC 27602

Subj: Remediation of Dry-Cleaning Solvent Contamination
DSCA Site # DC920029
Galaxy Cleaners, 101-B New Waverly Place, Cary

Dear Ms. Ledford:

The Dry-Cleaning Solvent Cleanup Act of 1997 (DSCA), North Carolina General Statutes (N.C.G.S.) Sections 143-215.104A through 143-215.104U, provides for the assessment and remediation of properties that may have been or were contaminated by chlorinated solvents. To satisfy the requirements of N.C.G.S. 143-215.104L, this letter serves as the **Notice of Intent to Remediate a Dry-Cleaning Solvent Facility or Abandoned Site** (NOI) approved by the North Carolina Department of Environmental Quality (DEQ).

The NOI must provide, to the extent known, a legal description of the location of the DSCA Site, a map showing the location of the DSCA Site, a description of the contaminants involved and their concentrations in the media of the DSCA Site, a description of the intended future use of the DSCA Site, any proposed investigation and remediation, and a proposed Notice of Dry-Cleaning Solvent Remediation (NDCSR) prepared in accordance with N.C.G.S. Section 143-215.104M. The required components of the NOI are included in the attached Risk Management Plan, and are available on our website at www.ncdsca.org, under "Public Notices" during the public comment period.

The DSCA Program is providing a copy of the NOI to all local governments having jurisdiction over the DSCA Site. A 30-day public comment period is being held from <date>, until <date>. Written comments may be submitted to DEQ no later than <date>. Written requests for a public meeting may be submitted to DEQ no later than <date>. All such comments and requests should be sent to:

Scott Stupak, DSCA Remediation Unit
Division of Waste Management, NC DEQ
1646 Mail Service Center
Raleigh, North Carolina 27699-1646



A Summary of the NOI is being published in The News & Observer copies are being sent to owners of property within and contiguous with the area of contamination, and a copy of the Summary will be conspicuously posted at the Site during the public comment period.

If you have any questions, please feel free to contact me at (919)707-8359.

Sincerely,

Scott Stupak, Project Manager
DSCA Remediation Unit
scott.stupak@ncdenr.gov

Attachment: Risk Management Plan

cc: DSCA Site # DC920029 File



Public Notice

**SUMMARY OF NOTICE OF INTENT TO REMEDIATE A DRY-CLEANING
SOLVENT FACILITY OR ABANDONED SITE**

**N.C. Department of Environmental Quality
Division of Waste Management
Dry-Cleaning Solvent Cleanup Act (DSCA) Program**

Galaxy Cleaners
DSCA Site # DC920029

Pursuant to N.C.G.S. §143-215.104L, on behalf of NWWP, LP, the North Carolina Department of Environmental Quality's (NCDEQ's) private contractor has prepared a Notice of Intent to Remediate a Dry-Cleaning Solvent Facility or Abandoned Site (NOI). The purpose of this Summary of the NOI is to notify the community of the proposed remedy for the contamination site and invite comment on the proposed remedy.

Galaxy Cleaners formerly conducted dry-cleaning operations at the Waverly Place Shopping Center located at 101-B New Waverly Place, in Cary, North Carolina. The property is currently occupied by Whole Foods Market. Dry-cleaning solvent contamination in soil and/or groundwater has been identified at the following parcel(s):

2001 Kildaire Farm Road, in Cary; Parcel No. 0762630729
530 New Waverly Place, in Cary; Parcel No. 0762635240

An investigation of the extent of contamination has been completed. A risk assessment of the contaminated properties concluded that the contamination poses no unacceptable risks. A Risk Management Plan (RMP) has been prepared which proposes using land-use controls to prevent current and future risks at the affected properties.

The elements of the complete NOI are included in the RMP which is available online at <http://portal.ncdenr.org/web/wm/DSCA/PublicNotices>.

The public comment period begins February 7, 2016, and ends March 8, 2016.

Comments must be in writing and submitted to NCDEQ no later than March 8, 2016. Written requests for a public meeting may be submitted to NCDEQ no later than March 8, 2016. Requests for additional information should be directed to Scott Stupak at (919)707-8359. All comments and requests should be sent to:

Scott Stupak DSCA Remediation Unit
Division of Waste Management, NCDEQ
1646 Mail Service Center
Raleigh, North Carolina 27699-1646